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NOTIFICATION

No. B.14015/6/2019-LESDE, Aizawl, the 29th July, 2026: The Mizoram Code on Social Security Rules, 2026 was pre-published as required under sub-section (1) of section 154 and sub-section (1) of section 156 of the Code on Social Security, 2020 (36 of 2020) in the Mizoram Gazette Extraordinary, Vol. LV, Issue No. 411, vide Notification No. B.14015/6/2019-LESDE, dated the 11th May, 2026, published on the 18th May, 2026, inviting objections and suggestions from all persons likely to be affected thereby within a period of forty-five days from the date on which copies of the Gazette containing the said notification were made available to the public on the 18th May, 2026.

Since no objections or suggestions were received from any person or stakeholder within the period specified, the Government of Mizoram, in pursuance of the decision of the Council of Ministers conveyed by the Political & Cabinet Department vide Memo No. J.11011/2/2026-POL, Dated 24.07.2026 and in exercise of the powers conferred by section 154 and 156 of the Code on Social Security, 2020 (36 of 2020), read with section 24 of the General Clauses Act, 1897 (10 of 1897), and in supersession of the Mizoram Code on Social Security Rules, 2023 except as respects things done or omitted to be done before such supersession, is pleased to make the following rules, namely:-

THE MIZORAM CODE ON SOCIAL SECURITY RULES, 2026

CHAPTER I
PRELIMINARY

1. Short title, application and commencement.–

1) These rules may be called The Code on Social Security (Mizoram) Rules, 2026.

2) They shall extend to the whole of Mizoram.

3) They shall come into force on such date as the State Government may, by notification in the Official Gazette appoint.

2. Definitions.-(1) *In these rules, unless the subject or context otherwise requires, —*

(a) ***"agency"*** means any corporation, body or institution, established under an Act of Parliament or Central Public Sector Undertaking as notified by the Central Government or the Government of Mizoram.

(b) ***"appellate authority"*** means the State Government or the authority specified by the State Government under sub-section (8) of section 56 or an officer, senior in rank to the Assessing Officer for the purposes of section 105 of the Code, appointed by the State Government, as the case may be;

(c) ***"Assessing Officer"*** means a gazetted officer of a State Government appointed by the State Government for assessment of Cess under the Code;

(d) ***"Average daily wages during a wage period"*** under chapter IV of the Code means-

(i) In respect of an employee who is employed on time-rate basis, the amount of wage which would have been payable to him for the complete wage period had he worked on all the working days in that wage period, divided by 26 if he is monthly rated, 12 if he is fortnightly rated, 6 if he is weekly rated and 1 if he is daily rated;

(ii) In respect of an employee employed on any other basis, the amount of wages earned during the complete wage period in the Contribution period divided by the number of days in full or part for which he has worked for wages in that wage period : Provided that where an employee receives wages without working on any day during such wage period, he shall be deemed to have worked for 26, 12, 6 or 1day(s) if the wage period be a month, a fortnight, a week or a day respectively.

Explanation - Where any night shift continues beyond midnight, the period of the night shift after midnight shall be counted for reckoning the day worked as part of the day preceding;

(e) ***"benefit period"*** means the period not exceeding six consecutive months corresponding to the contribution period, as may be specified in the Regulations;

(f) ***"career centre"*** means that career centre as notified by the State Government;

(g) ***"cess collector"*** means an officer appointed by the State Government for collection of cess under the Code ;

(h) ***"chartered engineer"*** means a person having an engineering degree and the corporate membership of Institute of Engineers India;

(i) ***"Code"*** means the Code on Social Security, 2020 (36 of 2020);

(j) ***"electronically"*** means any information or communication submitted by email or uploading on the designated portal or digital payment in any mode for the purpose of Code;

(k) ***"excluded vacancies"*** means those vacancies which have been excluded from the purview of the section 139 as per the provisions of sub-sections (1)and (2) of section 140;

(l) ***"Form"*** means a form appended to these rules;

(m) ***"fund"*** means the Employees' State Insurance Fund, the Employees' Provident Fund, the Employees' Pension Fund, the Employees' Deposit-Linked Insurance Fund or the Social Security Fund, as the case may be;

(n) ***"Government Securities"*** means Government Securities as defined in the Government Securities Act, 2006 (38 of 2006);

(o) ***"immovable property"*** includes land, benefits to arise out of land, things attached to the earth, or permanently fastened to anything attached to the earth;

(p) ***"movable property"*** means property of every description except immovable property;

(q) ***"nodal officer"*** means a person designated by Building and Other Construction Workers' Welfare Board or the State Government not below the rank of Joint Labour Commissioner

under the department of Labour, Employment, Skill Development & Entrepreneurship (LESDE) to facilitate the registration, renewal and updating electronically or otherwise or any such other function of Building Workers working in the Private Sector, State Government, Central Government and Public Sector Undertakings of the Central and the State Governments or local authority. The Nodal officer shall also supervise and monitor functions of the Beneficiary Registering Officers designated by Appropriate Government;

(r) ***"nomination"*** means nomination made under section 55 of the code;

(s) ***"register of women employees"*** means a register of women employees maintained under sub-rule (1) of rule 27;

(t) ***"schedule"*** means the schedule of the Code;

(u) ***"section"*** means a section of the Code;

(v) ***"Shram Suvidha Portal"*** means portal of Ministry of Labour and Employment.

(w) ***"specified"*** means specified by an order of the Central Government or any State Government or any officer so authorised by such Government;

(x) ***"standard benefit rate"*** means average daily wages obtained by dividing the total wages paid during the Contribution period by the number of days for which these wages were paid ;

(y) ***"year"*** shall mean the financial year, beginning from the first of April and ending with the thirty first of March of the year following.

(2) The words and expressions used in these rules which are not defined therein, but are defined in the Code, shall have their respective meaning as assigned to them in the Code.

CHAPTER - II
SOCIAL SECURITY ORGANIZATION
PART – I
MIZORAM UNORGANIZED WORKERS SOCIAL SECURITY BOARD

3. Manner of exercising the powers and performance of functions by State Unorganised Workers' Board under sub-section (9) and sub section (16), the manner of nomination of members of the Board, their term of office and other conditions of service, the procedure to be followed in the discharge of their functions by, and the manner of filling vacancies among the members of, the Board under sub-section (12), the time, place and rules of procedure relating to the transaction of business at its meetings under sub-section(14) of section 6.-

(1) Constitution of the State Social Security Board for Unorganised Workers.-

(a) The Board constituted by notification under sub-section (9) of section 6 shall be called the 'Mizoram Unorganised Workers Social Security Board";

(b) a member, other than an ex-officio member, shall hold office for a period not exceeding three years from the date of his nomination;

(c) a member shall be eligible for re-nomination: Provided that a member shall not hold the office for more than a total of two terms;

(d) state Government may seek nomination from amongst the representatives of associations of unorganised sector workers and employers' associations of unorganised sector, in

the Mizoram Unorganised Workers Social Security Board for Unorganised Workers, in the category of sub-clauses (i) and (ii) of clause (d) of sub-section (10) of section 6 in such a manner, as notified by the Government:

Provided that at least two members nominated shall be active unorganised worker registered under the Code;

(e) the State Government shall nominate five persons under sub-clause (iv) of clause (d) of sub-section (10) of section 6 of the Code from amongst persons of eminence in the field of labour welfare, management, finance, law and administration;

(f) out of seven persons nominated under clause (a) and (e) of sub-rule (1) of rule 3, at least one woman member shall be represented;

(g) the State Government shall seek nomination of two members representing the State Legislative Assembly under sub-clause (iii)of clause (d) of sub-section (10) of section 6 of the Code;

(h) the State Government shall nominate ten Members under sub-clause (v) of clause (d) of sub-section (10) of section 6 of the Code representing Departments of State Government, concerned with the matters related to the welfare of the unorganised sector workers;

(i) a member nominated under sub-clauses (i), (ii) and (iv) of clause(d) of sub-section (10) of section 6 of the Code, shall cease to be a member of the Board if he ceases to represent the category of interest from which he was so nominated:

(j) a member nominated under sub-clause (iii) of clause (d) of sub-section (10) of section 6 of the Code shall cease to be a member of the Board if he ceases to be a member of State Legislative Assembly by which he was so elected;

(k) no person shall be chosen as, or continue to be, a member of the Board, if such person attracts any provision(s) of section 8 of the Code;

(l) the Member Secretary of the Mizoram Unorganised Workers Social Security Board shall be an officer of the Labour, Employment, Skill Development & Entrepreneurship Department notified by the State Government not below the rank of Joint Labour Commissioner.

(2) Manner of exercising the powers and performance of the functions of the Mizoram Unorganised Workers Social Security Board.—

(a) the Board, for discharging its functions as assigned to it, under sub-section (15) of section 6 of the Code, may constitute a committee to deliberate and recommend on the specific issue as may be assigned to such committee;

(b) such committee may co-opt members from the Board or outside as the case may be, from the field of the experts, on which committee is required to deliberate.

(3) Reconstitution of the Board.—

(a) state Government shall initiate the process for reconstitution of the Mizoram Unorganised Workers Social Security Board, prior to six months of expiry of the term of the Board;

(b) if the new Board is not re-constituted after completion of the term of the board, such arrangements may be made for discharging and function of the board as may be decided by the State Government for the period till the new Board is constituted, by notification;

(c) consequent upon institution of such arrangement, all actions taken shall have the same effect as if it has been carried out by the Board itself.

(4) Resignation.—

(a) A member of the Board, not being an ex-officio member, may resign by a letter in writing addressed to the State Government;

(b) The seat of such a member shall fall vacant from the date on which his resignation is accepted or on the expiry of thirty days from the date of receipt of intimation of resignation, whichever is earlier;

(c) The power to accept the resignation of a member shall vest with the State Government.

(5) Change of address.- If a member changes his address, he shall notify his new address to the Member Secretary of the Board who shall thereupon enter his new address in the official records: Provided that if a member fails to notify his new address, the address in the official records shall for all purposes be deemed to be the member's correct address.

(6) Manner of filling vacancies.- When a vacancy occurs or is likely to occur in the membership of the Board, Member Secretary of the Board shall submit a report to the State Government and on receipt of such report, the State Government may, by notification, nominate a person to fill the vacancy in the manner provided under sub-rule (1) of rule 3 above, and the person so nominated shall hold office for the remainder of the term of office of the member in whose place he is nominated.

(7) Procedure for removal of a member.-

(a) During the pendency of the proceeding, if any, under clauses (b) and(c) of sub-section (2) of section 8 of the Code, for removal of a member of the Mizoram Unorganised Workers Social Security Board, such member shall abstain from the meeting(s) of the Board.

(b) The decision of the State Government, on the debarment, disqualification and removal of any member under section 8 of the Code, shall be final.

(8) Meeting .—

(a) The Board shall meet at such places and at such times as may be decided by the Chairperson.

(b) The Board shall meet once in three months.

(c) In case of any matter of urgency special meetings may be called by the Chairperson after informing the members in advance about the subject-matter of discussion and the reasons of urgency.

(d) In case of any matter of urgency meeting by circulation or other mode may be held.

(e) The Chairperson shall preside over every meeting of the Board in which he is present and in his absence the meeting of the Board shall be chaired by the Vice-Chairperson.

(9) Notice of meeting and list of business.—

(a) Ordinarily, seven days notice shall be given to the members of the Board of a proposed meeting:

(b) The Chairperson, if he is satisfied that it is expedient to do so, may give notice of shorter period.

(c) No business except which is included in the list of business for a meeting of the Board shall be considered at the meeting without the permission of the Chairperson.

(10) Quorum.—

(a) No business shall be transacted at any meeting of the Board unless at least ten members are present in that meeting:

Provided that if at a meeting, less than ten members are present, the Chairperson may adjourn the meeting to another date informing the members present and giving notice to the other members that he proposes to dispose of the business at the adjourned meeting whether there is prescribed quorum or not, and it shall thereupon be lawful for him to dispose of the business at the adjourned meeting irrespective of the number of members attending;

(b) The Chairperson may debar any member, other than ex-officio members, from taking part in the meeting of the Board if-

(i) he absents himself from three consecutive meetings of the Board without written information to and consent of the Chairperson; or

(ii) in the view of the State Government, such member has ceased to represent the interest which he purports to represent on the Board.

(11) Disposal of business.—

(a) every question considered at a meeting of the Mizoram Unorganised Workers Social Security Board shall be decided by a majority of the votes of the members of the body concerned present and voting. In the event of an equality of votes the Chairperson shall exercise an additional casting vote;

(b) the Chairperson may, if he thinks fit, direct that any question shall be decided by the circulation of necessary papers to members of the Mizoram Unorganized Workers Social Security Board and by securing their opinions in writing. Any such question shall be decided in accordance with the opinion of the majority of members received within the time-limit allowed and if the opinions are equally divided, the opinion of the Chairperson shall prevail:

Provided that any member of the Mizoram Unorganised Workers Social Security Board may request that the question referred to members of the concerned body, as the case may be, for written opinion be considered at a meeting of the Mizoram Unorganized Workers Social Security Board and there upon the Chairperson may, if the request is made by not less than three members of the concerned body, direct the procedure to be adopted.

(12) Allowances to non-official members.— Non-official members shall be entitled for travelling allowance and daily allowance at the rate admissible to the group "A" officers of the State Government.

PART- II
MIZORAM BUILDING AND OTHER CONSTRUCTION WORKERS WELFARE BOARD

4. Terms and conditions of appointment and the salaries and other allowances payable to the chairperson and the other members of the Building Workers' Welfare Board and the manner of filling of casual vacancies of such members, under sub-section(4), the terms and conditions of appointment and the salary and allowances payable to the Secretary and the other officers and employees of the said Board under clause (c) of sub-section(5) of section 7 of the Code.-

(1) Composition of the Board.—

(a) the Chairperson of the Mizoram Building and Other Construction Workers Welfare Board shall be appointed by the State Government.

(b) the Vice Chairperson of the Mizoram Building and Other Construction Workers Welfare Board shall be an officer not below the rank of Director from the Labour, Employment, Skill Development and Entrepreneurship Department.

(c) the State Government shall nominate fifteen members in the Mizoram Building and Other Construction Workers Welfare Board. The members of the Board shall be as follows, namely:–

A. *The representatives of departments of State Government shall be Officer not below the rank of Deputy Secretary and consist of -*
   a. Finance Department;
   b. Social Welfare Department;
   c. Law & Judicial Department;
   d. Labour, Employment, Skill Development & Entrepreneurship Department, Administrative wing and
   e. Labour, Employment, Skill Development & Entrepreneurship Department, Directorate.

B. There shall be five representatives of building workers:
   Provided that at least three representative of building workers shall be active building workers registered in board of Construction workers and at least one shall be woman worker.

C. There shall be five representatives of employers of building workers, one from each of the following:-
   a. Public Works Department (Building);
   b. Public Works Department (Road);
   c. Contractors Association;
   d. Builders Association or Representative;
   e. Aizawl Municipal Corporation.

(2) Term and Reconstitution of the Board:-

(a) the terms of Mizoram Building and Other Construction Workers Welfare Board shall be three years from the date of its constitution;

(b) the State Government shall initiate the process for reconstitution of the Mizoram Building and other Construction Workers Welfare Board, prior to six months of expiry of the term of the Board;

(c) if the new Board is not re-constituted after completion of the term of the Board, such arrangements may be made for discharging and function of the board as may be decided by the State Government for the period till the new Board is constituted, through a notification;

(d) consequent upon institution of such arrangement, all actions taken shall have the same effect as if it has been carried out by the Board itself;

(e) a member, other than an ex-officio member, shall hold office for a period not exceeding three years from the date of his nomination;

(f) a member shall be eligible for re-nomination;

(g) the non-official members shall be removed by State Government from the Board if they cease to represent the interest for which he was nominated or if such person attracts any provision of section 8 of the Code.

(3) Manner of filling of vacancies.—When a vacancy occurs for any reason or likely to occur in the membership of the Board, the Secretary of the Board shall submit a report to the State

Government who shall take steps to fill the vacancy from amongst the category of person, to which the person vacating membership belongs and the person so nominated shall hold office for the remainder of the term of the office of the member in whose place he is appointed.

(4) Meeting.—

(a) the Mizoram Building and Other Construction Workers Welfare Board shall meet at such places and at such times as may be decided by the Chairperson;

(b) the Board shall meet at least once in four months;

(c) in case of any matter of urgency special meetings may be called by the Chairperson after informing the members in advance about the subject-matter of discussion and the reasons of urgency;

(d) in case of any matter of urgency meeting by circulation or other mode may be held;

(e) the Chairperson shall preside over every meeting of the Board in which he is present and in his absence, the meeting of the Board shall be chaired by the any member nominated by Chairperson in his behalf.

(5) Quorum.—

(a) no business shall be transacted at any meeting of the Mizoram Building and Other Construction Workers Welfare Board unless at least six members are present in that meeting;

(b) if in a meeting, presence is less than quorum, the Chairperson may adjourn the meeting to another date informing the members present and giving notice to the other members that he proposes to dispose of the business at the adjourned meeting whether there is prescribed quorum or not, and it shall thereupon be lawful for him to dispose of the business at the adjourned meeting irrespective of the number of members attending;

(c) the Chairperson may debar any member, other than ex-officio members, from taking part in the Meeting of the Board if-

(i) he absents himself from three consecutive meetings of the Board without written information to and consent of the Chairperson; or

(ii) in the view of the State Government, such member has ceased to represent the interest which he purports to represent on the Board as per clause (vii) of sub-rule (2) of rule 4.

(6) Disposal of business.—

(a) every question considered at a meeting of the Mizoram Building and Other Construction Workers Welfare Board shall be decided by a majority of the votes of the members of the body concerned present and voting. In the event of an equality of votes the Chairperson shall exercise an additional casting vote;

(b) the Chairperson may, if he thinks fit, direct that any question shall be decided by the circulation of necessary papers to members of the Board and by securing their opinions in writing. Any such question shall be decided in accordance with the opinion of the majority of members received within the time-limit allowed and if the opinions are equally divided, the opinion of the Chairperson shall prevail:

Provided that any member of the Board may request that the question referred to members of the concerned body, as the case may be, for written opinion be considered at a meeting of the Board and thereupon the Chairperson may, if the request is made by not less than three members of the concerned body, direct the procedure to be adopted.

(7) Salary and allowances to Chairperson and non-official members.-

(a) non-official members shall be entitled for travelling allowance and daily allowance at the rate admissible to the group "A" officers of State Government;

(b) salary and allowances to the Chairperson of the Board, if required, shall be fixed by State Government by notification.

(8) Conditions of appointment, salary and allowances of Secretary, Assistant Secretary and other staff of the Board.-

(a) the Board shall, with the prior approval of the State Government, appoint an officer of Labour, Employment, Skill Development & Entrepreneurship (LESDE) Department not below the rank of Joint Labour Commissioner, as a Secretary of the Board;

(b) the Board shall, with the prior approval of State Government, appoint an officer of Labour, Employment, Skill Development & Entrepreneurship Department not below the rank of Deputy Director / Assistant Labour Commissioner as Assistant Secretary and other staff for disposal of functions of the Board;

(c) the Secretary of the Board, Assistant Secretary of the Board and other staff shall be appointed in the manner determined by the State Government by notification;

(d) all the Officers & staff shall be appointed on contract or deputation basis as per the recruitment rules or service rules or guidelines framed and approved by the Government of Mizoram to assist the Board in the efficient discharge of its functions under the Code:

Provided that the appointment hereof on contract basis shall not be deemed to confer any right or claim in service matter against the Government of Mizoram and shall be subject to sub-section (3) of section 108 of the Code;

(e) the salaries and allowances and other terms and conditions of service of the officers and staff appointed on contract or deputation basis shall be as decided by the State Government."

(9) Social security schemes and welfare measures under sub-section (6) of section 7.—

(a) the Board shall, with the prior approval of State Government, notify social security schemes and welfare measures prescribed in sub-section (6) of Section 7;

(b) the Board shall formulate social security schemes and welfare measures in which eligibility limit, detail of various benefits, application form, procedure, determination of competent authority for sanction of benefit and manner of payment and other incidental matters there to shall be clearly mentioned;

(c) the State Government may open State, District and Sub-Divisional level offices as it may consider desirable for the purpose of implementing the Code and the welfare schemes;

(d) the Board may, with the prior approval of the State Government, constitute such sub-committees as it may deem fit for the proper discharge of its duties and the members of such sub-committee shall be allowed travelling allowance and daily allowance at the rates and subject to the conditions specified under sub-rule 7.
The sub-committee shall consist of the following persons, namely:-

(i) Vice Chairperson of the Board;

(ii) Official of Labour, Employment, Skill Development & Entrepreneurship Department – Member Secretary;

(iii) One member representing the employers;

(iv) One member representing the building workers and

(v) Two members representing the Government.

(e) (i) the Vice-Chairperson of the Board shall be the Chairperson of the sub-committee. If the Vice-Chairperson is absent at any time the members present shall elect one among them to preside over the meeting;

(ii) no business shall be transacted at a meeting of the sub-committee unless at least three members of the Committee are present of whom one shall be from the members representing employers and another one shall be from the members representing building workers;

(iii) the term of the sub-committee shall be two years from the date of its constitution: Provided that the sub-committee shall continue in office until a new committee is constituted:
Provided further that in no case the sub-committee shall continue beyond a period of three years from the date of its original constitution;

(iv) The recommendation of the sub-committee shall be placed before the Board for its decision.

CHAPTER III
EMPLOYEES INSURANCE COURT

5. Manner and time within which second appeal may be filed to the Employees' Insurance Court by the Insured Person or the Corporation under clause (b) of sub-section(7) of section 37 of the Code.—

(1) The Insured Person or the Corporation may appeal to the Employees' Insurance Court by presenting an application within ninety days of the date of communication of the decision of the Medical Board or of the Medical Appeal Tribunal to the Insured Person or the Corporation, as the case maybe:

Provided that the Employees' Insurance Court may entertain an application after the period of ninety days, if it is satisfied that the appellant had sufficient reasons for not presenting the application within the said period.

(2) The applications to the Employees' Insurance Court, shall be in Form I.

6. Procedure to be followed by the Employees' Insurance Court under sub-section(2) and the rules under sub-section (3) of section 50 and the manner of commencement of proceedings before the Employees' Insurance Court, fees and procedure thereof under sub-section (1) of section 51 of the Code.-

(1) For the purpose of section 48, the State Government, by notification, shall constitute an Employees' Insurance Court for such local area as may be specified in the notification.

(2) Procedure for application to the Employee Insurance Court-

(a) An application under section 49 shall be presented in triplicate in **Form II** and shall contain the following particulars namely:-

(i) the name of the Court in which application is brought;

(ii) full name description including age, occupation and full postal address of applicant and the opposite party.

(iii) where the applicant or the opposite party is a minor or a person of unsound mind, a statement to that effect and the full name, age, occupation and full postal address of his or her guardian, next-of-kin, or any other person authorized to act on his or her behalf.

(iv) the fact constituting the cause of action and the date when it arose.

(v) the facts showing that court has jurisdiction.

(vi) The relief which the applicant claims.

(b) every application shall be verified in the same manner as a pleading in a Civil Court.

(c) all the documents on which the application is based or has desired by applicant shall be appended to application with an accurate list thereof;

(d) all application shall be entered in a register in Form- III to be maintained by the Court.

(3) Proceeding of Employees Insurance Court.—

(a) every application to the Court shall be brought within three years on which the cause of action arose or as the case may be, the claim becomes due;

(b) where at any stage it appears to the Court that the application should be presented to another Court, or should be entertained by the another Court, the first mentioned Court shall send the application or file of the case to the Court empowered to deal with it and shall inform the applicant and the opposite party accordingly and the Court to which application for file is transferred shall continue the proceedings as if the previous proceedings or any part of it had been taken before it;

(c) the Court shall follow the procedures of the Code of Civil Procedure, 1908 in respect of summoning of the parties, service of summon, procedure of hearing, framing of issues, statement and production of evidence, method of recording evidence, cross examination of witness and other related matters.

(4) Fees and Costs.—

(a) the fee payable on an application in respect of any matter referred to in section 49 of the Code shall be hundred rupees;

(b) the fee and costs payable in respect of any other matters shall be such as prescribed by the relevant laws prescribed for the time being in force;

(c) all fees and costs referred to in this rule shall be collected by means of Court fee stamps.

CHAPTER IV
GRATUITY

7. Bank or other financial institution in which the gratuity shall be invested for the benefit of minor under the third proviso to sub-section (1) of section 53 of the Code:—

(1) In the case of nominee, or an heir, who is minor, the competent authority shall invest the gratuity amount deposited with him for the benefit of such minor in term deposit with the State Bank of India or any other Nationalised Bank.

Explanation.- "Nationalised Bank" means a corresponding new bank specified in the First Schedule to the Banking Companies (Acquisition and Transfer of Undertakings) Act, 1970 (5 of 1970) or a corresponding new bank specified in the First Schedule of the Banking Companies(Acquisition and Transfer of Undertakings) Act, 1980 (40 of 1980).

(2) Time, form and manner of nomination by an employee under sub-section(1), the time to make fresh nomination under sub-section (4), the form and manner of modification of a nomination under sub-section (5)and the form for fresh nomination under sub-section (6) of section 55 of the Code .—

(a) a nomination shall be in **Form-IV** and submitted in duplicate by the employee either by personal service, after taking proper receipt or by registered post acknowledgement due or electronically to the employer;

(i) In the case of an employee who is already in employment for a year or more on the date of commencement of these rules but not submitted the nomination, ordinarily, within ninety days from such date; and

(ii) In the case of an employee who completes one year of service after the date of commencement of these rules, ordinarily within thirty days of the completion of one year of service:

Provided that nomination in **Form-IV** shall be accepted by the employer after the specified period, if filed and no nomination so accepted shall be invalid merely because it was filed after the specified period.

(b) within thirty days of the receipt of nomination in **Form-IV** under sub-rule (1), the employer shall get the service particulars of the employee, as mentioned in the form of nomination, verified with reference to the records of the establishment and return to the employee, after obtaining a receipt thereof, the duplicate copy of the nomination in **Form-IV** duly attested either by the employer or an officer authorised in this behalf by him, as a token of recording of the nomination by the employer and the other copy of the nomination shall be recorded;

(c) an employee who has no family at the time of making a nomination shall, within ninety days of acquiring a family submit in the manner specified in sub-rule (1), a fresh nomination, as required under sub-section (4) of section 55, duplicate in **Form-V** to the employer and thereafter the provisions of sub-rule (2) shall apply *mutatis mutandis* as if it was made under sub-rule (1);

(d) a notice of modification of a nomination, including cases where a nominee predeceases an employee, shall be submitted in duplicate in **Form-VI** to the employer in the manner specified in sub-rule (1)and thereafter the provisions of sub-rule (2) shall apply *mutatis mutandis;*

(e) a nomination or a fresh nomination or a notice of modification of nomination shall be signed by the employee or, if illiterate, shall bear his thumb impression in the presence of two witnesses, who shall also sign a declaration to that effect in the nomination, fresh nomination or a notice of modification of nomination, as the case may be, and shall be submitted by the employee electronically or by registered post acknowledgement due to the employer;

(f) a nomination, fresh nomination or notice of modification of nomination shall take effect from the date of receipt thereof by the employer.

8. Time within which and the form in which a written application shall be made under sub-section (1) and the form of application to the competent authority under clause (b) of sub-section (5) of section 56 of the Code.-

(1) Application for Gratuity,-

(a) an employee who is eligible for payment of gratuity under the Code, or any person authorized, in writing, to act on his behalf, shall apply, ordinarily within thirty days from

the date the gratuity became payable, in **Form-VII** to the employer:

Provided that where the date of superannuation or retirement of an employee is known, the employee may apply to the employer before thirty days of the date of superannuation or retirement:

Provided further that an employee on fixed term employment shall be eligible for gratuity, if he renders service under the contract for a period of one year and he shall be paid gratuity at the rate of fifteen days' wages, based on the rate of wages last drawn by him, for every completed year of service or part thereof in excess of six months.

(b) a nominee of an employee who is eligible for payment of gratuity under the second proviso to sub-section (1) of section 53 shall apply, ordinarily within thirty days from the date of gratuity became payable to him, in **Form-VII** to the employer:

Provided that an application in plain paper with relevant particulars shall also be accepted.

The employer may obtain such other particulars as may be deemed necessary by him;

(c) a legal heir of an employee who is eligible for payment of gratuity under the second proviso to sub-section (1) of section 53 shall apply, ordinarily within one year from the date of gratuity became payable to him, in **Form-VII** to the employer;

(d) where gratuity becomes payable under the Code before the commencement of these rules, the periods of limitation specified in clauses (i), (ii) and (iii) sub-rule (1) shall be deemed to be operative from the date of such commencement;

(e) an application for payment of gratuity filed after the expiry of the periods specified in this rule shall also be entertained by the employer, if the applicant produces sufficient cause for the delay in preferring his claim, and no claim for gratuity under the Code shall be invalid merely because the claimant failed to present his application within the specified period. Any dispute in this regard shall be referred to the competent authority for his decision;

(f) an application under this rule shall be presented to the employer either by electronically or personal service or by registered post.

(2) Notice for payment of gratuity.-

(a) within fifteen days of the receipt of an application under sub-rule (1) for payment of gratuity, the employer shall-

(i) if the claim is found admissible on verification, issue a notice in **Form-VIII** to the applicant employee, nominee or legal heir, as the case may be, specifying the amount of gratuity payable and fixing a date, not being later than the thirtieth day after the date of receipt of the application, for payment thereof; or

(ii) if the claim for gratuity is not found admissible, issue a notice in **Form-VIII** to the applicant employee, nominee or legal heir, as the case may be, specifying the reasons why the claim for gratuity is not considered admissible. In the case of denial of gratuity a copy of the notice shall be endorsed to the competent authority.

(b) in case payment of gratuity is due to be made in the employer's office, the date fixed for the purpose in the notice in **Form-VIII** under sub-clause (a) of clause (i) of sub-rule (2) shall be re-fixed by the employer, if a written application in this behalf is made by the payee explaining why it is not possible for him to be present in person on the date specified;

(c) if the claimant for gratuity is a nominee or a legal heir, the employer may ask for such witness or evidence as may be deemed relevant for establishing his identity or maintainability

of his claim, as the case may be. In that case, the time limit specified for issuance of notices under clause sub-clause (a) of clause (i) of sub-rule (2) shall be operative with effect from the date such witness or evidence, as the case may be, called for by the employer is furnished to the employer;

(d) a notice in **Form-VIII** shall be served on the applicant either by personal service after taking receipt or by registered post with acknowledgement due or electronically;

(e) a notice under sub-section (2) of section 56 of the Code shall be in **Form-VIII.**

(3) Mode of payment of gratuity.—

(a) The gratuity payable under the Code shall be paid through Demand Draft or by crediting in the bank account of the eligible employee, nominee or legal heir, as the case may be:

Provided that intimation about the details of payment shall also be given by the employer to the competent authority of the area.

(4) Application to competent authority for direction under clause (b) of subsection (5) of section 56 of the Code.—

(a) If an employer-

(i) Refuses to accept a nomination under sub-rule (2) or to entertain an application sought to be filed under sub rule (1) of rule 7; or

(ii) Issues a notice under sub-clause (a) of clause (i) of sub-rule (2) either specifying an amount of gratuity which is considered by the applicant less than what is payable or rejecting eligibility to payment of gratuity, or

(iii) Having received an application under sub-rule (1) fails to issue notice as required under sub- rule (2) within the time specified therein, the claimant employee, nominee or legal heir, as the case may be, may, within one hundred eighty days of the occurrence of the cause for the application, apply in **Form-IX** to the competent authority for issuing a direction under sub-section (5) of section 56 of the Code with as many extra copies as are the opposite party:

Provided that the competent authority may accept any application under this sub-rule, on sufficient cause being shown by the applicant, after the expiry of the specified period.

(b) Application under clause (i) sub-rule (4) and other documents relevant to such an application shall be presented in person to the competent authority or shall be sent by registered post acknowledgement due or electronically.

(5) Procedure for dealing with application for direction.—

(a) On receipt of an application under sub-rule (4) the competent authority shall, by issuing a notice in **Form-X**, by electronically or registered post acknowledgment due or in person call upon the applicant as well as the employer to appear before him on a specified date, time and place, either by himself or through his authorized representative together with all relevant documents and witnesses; if any.

(b) Any person desiring to act on behalf of an employer or employee, nominee or legal heir, as the case may be, shall present to the competent authority a letter of authority from the employer or the person concerned, as the case may be, on whose behalf he seeks to act together with a written statement explaining his interest in the matter and praying for permission so to act. The competent authority shall record thereon an order either according

his approval or specifying, in the case of refusal to grant the permission prayed for, the reasons for the refusal;

(c) A party appearing through an authorized representative shall be bound by the acts of such representative;

(d) After completion of hearing on the date fixed under clause (a), or after such further evidence, examination of documents, witnesses, hearing and inquiry, as may be deemed necessary, the competent authority shall record his finding as to whether any amount is payable to the applicant under the Code. A copy of the finding shall be given to each of the parties;

(e) If the employer concerned fails to appear on the specified date of hearing after due service of notice without sufficient cause, the competent authority may proceed to hear and determine the application ex parte. If the applicant fails to appear on the specified date of hearing without sufficient cause, the competent authority may dismiss the application:

Provided that an order under this clause may, on good cause being shown within thirty days of the said order, be reviewed and the application re-heard after giving not less than fourteen days' notice to the opposite party of the date fixed for rehearing of the application;

Provided further that the time limit for disposal of application for direction shall not exceed ninety days from the date of filing of the application before the Competent Authority. In case of non-appearance by either of the parties, a maximum of three opportunities may be given before disposal of the application.

(6) Place and time of hearing.—

The sittings of the competent authority shall be held at such times and at such places as he may fix and he shall inform the parties of the same in such manner as he thinks fit.

(7) Administration of oath.—

The competent authority may authorize a clerk of his office to administer oaths for the purpose of making affidavits.

(8) Summoning and attendance of witnesses.—

The competent authority may, at any stage of the proceedings before him, either upon or without an application by any of the parties involved in the proceedings before him, and on such terms as may appear to the competent authority just, issue summons to any person in **Form-X** either to give evidence or to produce documents or for both purposes on a specified date, time and place.

(9) Service of summons or notice:—

(a) Subject to the provisions of clause (b) any notice, summons, process or order issued by the competent authority may be served either personally or by registered post acknowledgement due or electronically or in any other manner as prescribed under the Code of Civil Procedure, 1908 (5 of 1908).

(b) Where there are numerous persons as parties to any proceeding before the Competent authority and such persons are members of any trade union or association or are represented by an authorised person, the service of notice on the Secretary, or where there is no Secretary, on the principal officer of the trade union or association, or on the authorized person shall be deemed to be service on such persons.

(10) Maintenance of records of cases by the competent authority.—

(a) The competent authority shall record the particulars of each case under section 56 and at the time of passing orders shall sign and date the particulars so recorded;

(b) The competent authority shall, while passing orders in each case, also record the findings on the merits of the case and file it together with the memoranda of evidence with the order sheet;

(c) Any record, other than a record of any order or direction, which is required by these rules to be signed by the competent authority, may be signed on behalf of and under the direction of the competent authority by any subordinate officer appointed in writing for this purpose by the competent authority.

(11) Direction for payment of gratuity.—

If a finding is recorded under clause (iv) of sub-rule (5) that the applicant is entitled to payment of gratuity under the Code, the competent authority shall issue a notice to the employer concerned in **Form-XI** electronically or registered post acknowledgment due or in person specifying the amount payable (including interest due, if any, under sub-section (4) of section 56 of the Code) and directing payment thereof to the applicant under intimation to the competent authority within thirty days from the date of the receipt of the notice by the employer. A copy of the notice shall be endorsed to the applicant employee, nominee or legal heir, as the case may be.

(12) Appeal.—

(a) The Memorandum of Appeal under sub-section (8) of section 56 of the Code shall be submitted to the appellate authority with a copy thereof to the opposite party and the competent authority either through delivery in person or under registered post acknowledgement due or electronically;

(b) The Memorandum of appeal shall contain the facts of the case, the decision of the competent authority, the grounds of appeal and the relief sought;

(c) There shall be appended to the Memorandum of Appeal a certified copy of the finding of the competent authority and direction for payment of gratuity;

(d) On receipt of the copy of Memorandum of Appeal, the competent authority shall forward records of the case to the appellate authority;

(e) Within fourteen days of the receipt of the copy of the Memorandum of Appeal, the opposite party shall submit his comments of each paragraph of the memorandum with additional pleas, if any, to the appellate authority with a copy to the appellant;

(f) The appellate authority shall record its decision after giving the parties to the appeal a reasonable opportunity of being heard. A copy of the decision shall be given to the parties to the appeal by electronically or registered post or in person and a copy thereof shall be sent to the competent authority returning his records of the case;

(g) The competent authority shall, on receipt of the decision of the appellate authority, make necessary entry in the records of the case maintained by him;

(h) On receipt of the decision of the appellate authority, the competent authority shall, if required under that decision, modify his direction for payment of gratuity and issue a notice to the employer concerned in **Form-XI** specifying the modified amount payable and directing payment thereof to the applicant, under intimation to the competent authority within fifteen days of the receipt of the notice by the employer. A copy of the notice be endorsed to the appellant employee, nominee or legal heir, as the case may be, and to the appellate authority;

(i) The time limit for disposal of appeal shall not exceed ninety days from the date of filing of appeal. In case of non-appearance by either of the parties, a maximum of three opportunities may be given before disposal of the appeal.

(13) Application for recovery of gratuity.—

Where an employer fails to pay the gratuity due under the Code in accordance with the notice by the competent authority under sub-rule (11) or sub-rule (12), as the case may be, the employee concerned, his nominee or legal heir, as the case may be, to whom the gratuity is payable may apply to the competent authority in duplicate in **Form XII** for recovery thereof under section 129 of the Code.

9. Manner of registration of an establishment by the employer under sub-section(3) and the manner of composition of the Board of Trustees of the approved gratuity fund and the manner in which the competent authority may recover the amount of the gratuity payable to an employee from the insurer under sub-section (4) of section 57 of the Code.—

(1) The State government shall notify the manner of registration of an establishment by the employer under sub-section (3) of section 57 as according to the provision referred in sub-section (1) and sub-section (2).

(2) The composition of the Board of Trustees of the approved gratuity fund shall be notified by State Government.

(3) All registration shall be preferably done electronically in **Form XIII.**

(4) Any amount directed to be paid under this section shall be recoverable as an arrear of land revenue.

***10.* Qualifications and experience of the officer appointed as the competent authority under sub-section (1) of section 58 of the Code.—**

The competent authority shall be appointed by the State Government by notification.

CHAPTER- V
MATERNITY BENEFIT ACT

11. Authority to whom an appeal may be preferred under sub-section (3) of section 72 of the Code.—

(1) Complaint under section 72.—

(a) A complaint under sub-section (1) of section 72 of the Code shall be made in writing in **Form-XIV** as the case may be;

(b) When a complaint referred to in section 72 of the Code is received by an Inspector - cum-Facilitator, he shall examine the relevant records maintained by the employer in this behalf, examine any person employed in the establishment and take down necessary statement for the purpose of the enquiry and if he is satisfied that the maternity benefit or the amount has been improperly withheld, he shall direct the employer to make the payment to the woman or to the person claiming the payment under section 63 of the code, as the case maybe, immediately or within a specified period:

Provided that the time limit for disposal of complaint shall not exceed ninety days from the date of filing of complaint. In case of non-appearance by either of the parties, a maximum of three opportunities may be given before disposal of the complaint.

(2) Appeal under section 72 of the Code.—

(a) An appeal against the decision of the Inspector-cum-Facilitator under sub-section (2) of section 72 of the Code, shall lie to the Competent Authority;

(b) The aggrieved person shall prefer an appeal in writing to the prescribed Authority in **Form-XV** and file other supporting documents;

(c) When an appeal is received, the prescribed Authority shall call from the Inspector-cum-Facilitator before a fixed date, the record of the case. The prescribed Authority shall, if necessary, also record the statements of the aggrieved person, and of the Inspector-cum-Facilitator and seek Clarification, if any, is required;

(d) Taking into account the documents, the evidence produced before him and the facts presented to him or ascertained by him, the prescribed Authority shall give his decision within a period of ninety days from filing of the application before him. In case of non-appearance by either of the parties, a maximum of three opportunities may be given before disposal of the appeal;

(3) The authority under the sub-section (3) of section 72 of the Code shall be appointed by the State Government by a notification.

CHAPTER- VI
EMPLOYEE'S COMPENSATION

12. Amount to be deposited towards the expenditure of the funeral of the employee with the competent authority by the employer under sub-section (7) of section 76 of the Code.—

If the injury of employee results in death, the employer shall in addition to compensation to be deposited under the Code with competent authority a sum of fifteen thousand rupees or such amount as may be prescribed by the State Government through Gazette notification, for payment of the same to the eldest surviving dependents of the employee towards the expenditure of the funeral of such employee or where the employee did not have the dependent or was not living with his dependent at the time of his death to the person who actually incurred such expenditure:

Provided that if the Central Government by notification enhances the amount specified in sub-section (7) of section 76 of the Code, the amount to be deposited under this rule shall be automatically enhanced.

13. Conditions when application for review is made without certificate of a medical practitioner under sub-section (1) of section 79 of the Code.—

Application for review of half-monthly payment under sub-section (1) of section 79, may be made without being accompanied by a medical certificate,—

(a) By the employer, on the ground that since the right to compensation was determined, the employee's wages have increased;

(b) By the employee, on the ground that since the right to compensation was determined, his wages have diminished;

(c) By the employee, on the ground that the employer, having commenced to pay compensation, has ceased to pay the same, notwithstanding the fact that there has been no change in the employee's condition such as to warrant such cessation;

(d) Either by the employer or by the employee, on the ground that the determination of the rate of compensation for the time being in force was obtained by fraud or undue influence or other improper means;

(e) Either by the employer or by the employee on the ground that in the determination of compensation there is a mistake or error apparent on the face of the record.

14. Class of employers and the form of notice-book under sub-section (4) of section 82 of the Code.—
Every employer to which the code applies shall maintain a notice book in accordance with sub-section of section 82 of the Code in **Form- XVI.**

15. Interval for medical examination under the proviso to sub-section (1) of section 84 of the Code.—
An employee who is in receipt of a half monthly payment shall not be required to submit himself for medical examination elsewhere than at the place where he is residing for the time being for more than twice in the first month following the accident or more than once in any subsequent month.

16. Form of statement to be submitted by the employer under sub-section (1) of section 88 of the Code.—
The Statement for fatal accident required by sub section (1) of section 88 of the Code shall, be in **Form XVII.**

17. Manner of Recording Memorandum for the purpose of sub-section (1) of section 89 of the Code.—

(1) Form of Memorandum- Memoranda of agreement sent to the competent authority under sub-section (1) of section 89 shall unless the competent authority otherwise directs, be in duplicate, and shall be in as close conformity as the circumstances of the case admit with, **Form XVIII,** or **Form XVIII-A,** or **Form XVIII-B** as the case may be.

(2) On receiving a memorandum of agreement, the competent authority shall, for taking decision to record memorandum or refusing to record, shall issue notice to parties to agreement in **(Form XIX)** fixing date and place of hearing that in default of objections he proposes to record the memorandum on the date so fixed: The notice under this sub-rule may be sent personally or through registered post/speed post or electronically:

Provided that the notice may be communicated orally to any parties who are present at the time when notice in writing would otherwise issue.

(3) On the date so fixed, the competent authority, after hearing the parties to agreement shall take decision to record or refuse to record the memorandum:

Provided that the issue of a notice under sub-rule (2) shall not be deemed to prevent the competent authority from refusing to record the memorandum on the date so fixed even if no objection be made by any party concerned.

(4) If on such date the competent authority decides that the memorandum ought not to be recorded, he shall inform the parties present of his decision and of the reasons thereof and if any party desiring the memorandum to be recorded is not present, he shall send information to that party.

(5) Registration of memorandum accepted for record.- In recording a memorandum of agreement, the competent authority shall cause the same to be entered in a register in **Form XX** and shall cause an endorsement to be entered under his signature on a copy of a memorandum to be retained by him in the following terms, namely-

"The memorandum of agreement bearing Serial No. _____of 20 in the register has been recorded this _____ day _____ of _____

(Signature) Competent authority"

18. Qualifications and Experience for competent authority under sub-section (1) of Section 91 of the Code.—

The competent authority shall be appointed by the State Government by notification.

19. Manner in which matters may be dealt with by or before a competent authority under sub-section (1) of section 92 of the Code.—

(1) On receipt of the application, the competent authority shall verify the jurisdiction as per the parameters specified in clause (a), (b) and (c) of sub-section (1) of section 92 of the Code.

(2) If it appears to the competent authority on receiving application that it should be presented to another competent authority, he shall return it to the applicant after endorsing upon it the date of the presentation and return, there as on for returning it and designation of the competent authority to whom it should be presented.

(3) If at any stage of case it appears to competent authority the application should be entertained by another competent authority, he shall send file of the case to that authority and who has the jurisdiction, and inform to applicant and other parties as per the procedure defined in sub-section (3) of section 93 of the Code.

(4) The competent authority to whom the case has been transferred, shall continue to proceed as if the previous proceedings were done before him, provided he is satisfied that it will not cause prejudice to the concerned parties.

20. Time-limit for disposal of application and cost incidental to the proceedings under sub-section (4) of section 93 of the Code.—

(1) The appropriate authority shall dispose the application within six months from the date of application received.

(2) Incidental Costs.—

(a) Any party to the dispute who desires to get certified copies of decision, decree, or other document may get decision, decree, or other document on payment of cost at the following rate ,-

(i) The cost for the copies of any document of record or statement or order or decree may be notified by the State Government from time to time;

(ii) The cost of service or summons or notices or expenses of witnesses or the cost payable in respect of any matter not referred before shall be such amount as may be specified in each case by the Court and such amount or any other sum of money payable under this rule shall be paid in such manner and within such time as may be notified by the State Government;

(iii) The Court may, whenever it finds either on applications of applicant or otherwise that the applicant is unable to pay the cost it may exempt the applicant from the payment of cost;

(b) Any person who is not a party to dispute, may get the certified copy of decision, decree or other documents except the confidential documents, on payment of the fees prescribed in above mentioned clauses.

21. Manner of authentication of memorandum under section 97 of the Code.-

(1) Evidence:-

(a) After framing of issues, parties may submit their evidence on affidavit, on which opposite

party shall have right to cross examination;

(b) On application by any party to the proceedings and on deposit of fees and expenses fixed by the competent authority, the competent authority may summon any witness whose evidence, he thinks necessary for just decision of the case;

(c) The evidence of all witnesses shall be recorded in the presence of competent authority and shall be authenticated by his signature and seal.

(2) Provisions of Code of Civil Procedure, 1908 to apply.—Save as otherwise expressly provided in the Act or these rules the Code of Civil Procedure, 1908 shall apply to proceedings before competent authorities, in so far as they may be applicable thereto:

Provided that: -

(a) For the purpose of facilitating the application of the said provisions the competent authority may construct them with such alternations not affecting the substance as may be necessary or proper to adapt them to the matter before him;

(b) The competent authority may, for sufficient reasons, proceed otherwise than in accordance with the said provision, if he is satisfied that the interests of the parties will not thereby be prejudiced.

CHAPTER VII
SOCIAL SECURITY AND CESS IN RESPECT OF BUILDING AND OTHER CONSTRUCTION WORKERS

22. Time limit to pay the amount of cess under section 101 of the Code.—

(1) The cess levied under the sub-section (1) of section 100 shall be paid by an employer, within thirty days of the completion of the construction project or within thirty days of the date on which assessment of cess payable is finished, whichever is earlier, to the cess collector.

(2) Notwithstanding the provisions of sub-rule (1), where the duration of the project or construction work exceeds one year, cess shall be paid within thirty days of completion of one year from the date of commencement of work and every year thereafter at the notified rates on the cost of construction incurred during the relevant period.

23. Fees for appeal under sub-section (2) of section 105 of the Code.—

A fee equivalent to one percentage of the amount in dispute or penalty or both, as the case may be, under such appeal.

24. Conditions to acquire, hold, sell or otherwise transfer any movable or immovable property under sub-section (1), conditions to invest moneys, re-invest or realise investments under sub-section (2) terms to raise loans and take measures for discharging such loans under sub-section (3) and terms to constitute for the benefit of officers and staff or any class of them, provident or other benefit funds under sub-section (4) of section 120 of the Code.–

The State Government may notify the conditions after consultation with Finance Department.

25. Conditions and manner of writing off irrecoverable dues under section 121 of the Code.—

Where the Mizoram Unorganized Workers Social Security Board is of the opinion that the amount of contribution, cess, interest and damages due to board has become irrecoverable, the Board or any

other officer authorised by it in this behalf may sanction the writing off of the said amount, subject to the following conditions, namely: —

(a) Establishment has been closed for more than five years and the whereabouts of the employer cannot be ascertained, despite all possible efforts;

(b) Decree obtained by the Board could not be executed successfully for want of sufficient assets of the defaulting employer; or

(c) Claim for contribution is not fully met by —

(i) The Official Liquidator in the event of factories or establishments having gone into liquidation; or

(ii) In the event of unit being nationalised or taken over by the Government.

CHAPTER VIII
INSPECTOR-CUM-FACILITATOR: POWERS AND DUTIES

26. Other powers of Inspector-cum-Facilitator under clause (e) of sub-section (6) of section 122 of the Code.-

An addition to powers in sub-section (6) of section 122, Inspector-cum-facilitator may exercise such other powers and shall perform such other duties as may be assigned by the State Government by general or special order.

CHAPTER IX
MAINTENANCE OF RECORDS & REGISTERS

27. Form and manner for maintenance of records and registers and other particulars and details under clause (a), manner and form for display of notices at the workplaces of the employees under clause (b) and the manner and period of filing returns to the officers or authority under clause (d) of section 123 of the Code.—

(1) Register of Women Employees.—

(a) The employer of every establishment in which women are employed shall prepare and maintain a register of women employees in **Form XXI** electronically or in hard copy and shall enter therein particulars of all women workers in the establishment. Further, it shall always be available for inspection under notified inspection scheme for the Inspector-cum-Facilitator;

(b) The employer may enter in the register of women employees such other particulars as may be required for any other purpose of the Code.

(2) Display of Notices.—

(a) Every employer shall display at a conspicuous place in the establishment, accessible to all employees, the notices required under the provisions of Chapter V of the Code and the rules framed thereunder;

(b) Such notices shall be displayed either in electronic form on digital boards or computers accessible to workers, or in hard copy, or in both forms, as may be suitable to the establishment;

(c) The notices shall be displayed in English and in the local language understood by the majority of the employees of the establishment;

(d) The employer shall keep the notices up-to-date and replace any damaged, illegible or outdated notices without delay;

(e) Where notices are displayed electronically, the employer shall ensure that they are continuously accessible during working hours and are protected against unauthorized alteration.

(3) Records,—

Records kept under the provisions of Chapter V of the Code and the rules framed thereunder shall be preserved for a period of two years from the date of their preparation.

(4) Annual returns.—

(a) The employer to which the provisions of Chapter V of the Code applies, on or before the 1st day of February in each year, upload a unified annual return in **Form-XXII** electronically or manually, giving information as to the particulars specified, in respect of the preceding year:

Provided that during inspection, the Inspector-cum-Facilitator may require the production of accounts, books, register and other documents maintained in electronic form or otherwise;

(b) Every employer shall file such returns electronically or otherwise to such officer or authority as may be fixed by State Government by general or special order.
Explanation.— (a) For the purposes of this sub-rule, the expression "electronic form" shall have the same meaning as assigned to it in clause (r) of section 2 of the Information Technology Act, 2000 (21 of 2000);

(c) If the employer to which the Code applies sells, abandons or discontinues the working of the establishment, then he shall, within one month of the date of such sale or abandonment or four months of the date of such discontinuance, as the case may be, upload online, on the web portal of the Government a further unified return in Form XVIII referred to in clause (a) in respect of the period between the end of the preceding year and the date of the sale, abandonment or discontinuance.

CHAPTER X
COMPOUNDING OF OFFENCE

28. Form and manner of application for compounding of an offence under subsection (4) of section 138 of the Code.—

(1) The officer authorized by the State Government by notification for the purposes of compounding of offences under sub-section (1) of section 138 shall issue electronically a compounding notice in **Form-XXIII** for the offences for which are compoundable under section 138 of the Code.

(2) The person so noticed may apply in Part III of **Form-XXIII** to the officer electronically and deposit the entire compounding amount by electronic transfer or otherwise, within fifteen days of the receipt of the notice.

(3) The Compounding Officer shall issue a composition certificate in Part IV of **Form-XXIII** within ten days of receipt of the composition amount, to such person from whom such amount has been received in satisfaction of the composition notice.

(4) If a person so noticed fails to deposit the composition amount within the prescribed time,

the prosecution shall be instituted before the Competent Court or the offence in respect of which the compounding notice was issued, against such person.

(5) For the compounding of an offence after the institution of prosecution in a Competent Court in respect thereof, the provisions of sub-section (6) of section 138 of the Code shall apply.

CHAPTER XI
EMPLOYMENT INFORMATION AND MONITORING

29. Manner and form of reporting vacancies and form of filing the return by the employer, to the concerned career centre under sub-section (2) of section 139 of the Code.—

(1) Reporting of Vacancies to Career Centres.-

(a) after the commencement of this Code in the State or area thereof, the employer in every establishment in public sector in that State or area shall, before filling up any vacancy in any employment in that establishment, report that vacancy or cause to be reported to such Career Centre as may be specified in the notification by the State Government;

(b) the employer in every establishment in private sector or every establishment pertaining to any class or category of establishments in private sector shall, before filling up any vacancy in any employment in that establishment, report that vacancy or cause to be reported to such Career Centre from such date as may be specified in the notification by the State Government;

(c) state Government shall provide for mechanism for receipt of vacancies reported by the employers. Career Centre to which the vacancies are reported, would provide a unique vacancy reporting number for the vacancy reported and convey it to the employer in writing, through email or digitally or through any other such media immediately but in any case not later than five working days from the date of receipt of reporting of vacancies.

Explanation:—

(i) *Establishment in "public sector"* means an establishment owned, controlled or managed by.—

(a) the Government or a Department of the Government;

(b) A Government company as defined in clause (45) of section 2 of the Companies Act, 2013 (No. 18 of 2013);

(c) A corporation (including a co-operative society) or an autonomous organization or an authority or a body established by or under a Central or State Act, which is owned, controlled or managed by the Government; and

(d) A local authority.

(ii) *"Establishment in private sector"* means an establishment which is not an establishment in public sector and with ordinarily 25 or more employees or such number of employees as may be notified by the State Government.

(2) Type of vacancies and respective Career Centre for reporting of vacancies.—

(a) the following vacancies, namely-

(i) all vacancies in posts of Technical and Scientific nature carrying a minimum pay or pay level or both as notified by the State Government, occurring in establishments in respect of which the State Government is the appropriate Government under the Code; and

(ii) vacancies which an employer may desire to be circulated to the Career Centres outside the State or Union Territory in which the establishment is situated shall be reported to such Career Centre as may be specified by the State Government *by notification.*

(b) vacancies which have been reported to the Career Centre and for which recruitment is to be made on State or Inter-State or all India basis, shall also be reported to Career Centre (Central) or uploaded on a digital portal as specified by the Central Government by notification.

(3) Form and manner of reporting of vacancies.—

(a) the vacancies shall be reported in writing or through valid official email or digitally to the Career Centre specified by the State Government;

(b) the vacancies shall be reported in the format given at **Form XXIV,** furnishing as many details as practicable, separately in respect of each type of vacancy;

(c) any change in the particulars already furnished to the Career Centre under clause (a) of sub-rule(3), shall be reported in writing or through official email or digitally as the case may be, to the specified Career Centre.

(4) Time limit in the reporting of vacancies.—

vacancies, required to be reported to the Career Centre, shall be reported at least fifteen days before the last date of receipt of the applications of the prospective candidates for purpose of appointment or taking interview or test against the vacancies reported.

(5) Maintenance of records.—

(a) after commencement of these rules in any state or area thereof, the employers in every establishment in the public sector in that state or area shall maintain records manually or electronically or digitally about -

i) total number of employees (regular, contractual or fixed term employment) on *thirty first March* of every year;

ii) persons recruited during the year ending on *thirty first March*;

iii) occupational details of its employees on *thirty first March* of every year;

iv) vacancies for which suitable candidates were not available during the year ending on *thirty first March*; and

v) approximate number of vacancies likely to occur during the next financial year.

(b) The State Government may by notification, require that from such date as may be specified in the notification, the employer in every establishment in private sector or every establishment pertaining to any class or category of establishment in private sector shall maintain records manually or electronically or digitally about -

i) total number of employees (regular, contractual or fixed term employment) on *thirty first March* of every year;

ii) persons recruited during the year ending on *thirty first March;*

iii) occupational details of its employees on *thirty first March* of every year;

iv) vacancies for which suitable candidates were not available during the year ending on *thirty first March*; and

v) approximate number of vacancies likely to occur during the next financial year.

(6) Submission of returns.—

An employer shall furnish to the concerned Career Centre yearly returns in form EIR

(Employment Information Return) as given at **Form-XXV** Yearly returns shall be furnished manually or, electronically, or digitally, as the case may be, as specified by the respective State Government in notification, within thirty days of the due date namely *thirty first March* of the year.

(7) Declaration of Executive Officer.—

The Director of Employment, controlling the work of Career Centres of the State Government, will declare in writing an officer looking after the work of Career Centres as "Executive Officer" for each district for the purpose of enforcement/implementation of Chapter XIII (Employment Information and Monitoring) of the Code. He shall be the officer who shall exercise the rights and perform duties referred to in section 139 of the Code, or authorize any person in writing to exercise those rights and perform duties.

(8) Levy of penalty under Chapter XIII of the Code.—

The Director of Employment or an officer of equivalent or above rank, controlling the work of Career Centres, of the respective State shall be the competent authority to approve institution or sanction the institution of levy of penalty for an offence under the Code as mentioned in section 133.

CHAPTER XII
MISCELLANEOUS

30. Constitution of Fund under Clause (ii) of sub-section (5) of section 141 of the Code.—

(1). In addition to source of fund mentioned in Clause (i) of sub-section (5) of section 141, the amount received from the following sources shall be credited to the Fund:-

(a) amount given by the State Government for the establishment of the fund;

(b) the amount of grant given by the Government of India, the State Government and other authorities and statutory bodies;

(c) amount received for registration/renewal of beneficiaries and their contribution;

(d) amount received for implementation of the scheme notified by the Government of India;

(e) amount received for implementation of the scheme notified by the State Government;

(f) contribution or donation or any other financial support from employer, their association or from Corporate Social Responsibility Fund as determined by the State Government by general or special order;

(g) any other source which is approved by State Government through notification.

31. Time limit for forwarding views on exemption applications under section 143 of the Code.-

The State Board shall forward its views on any application seeking exemption under sub-section (1) of section 143 of the Code to the appropriate Government within a period of six months from the date of receipt of such application:-

Provided that if the State Board fails to forward its views within the said period, the appropriate Government may, for reasons to be recorded in writing, either extend the time limit or proceed to decide the application as it deems fit.

32. Conditions to be complied with after grant of exemption under section 143 of the Code.-

(1) An establishment or class of establishments, or employee or class of employees, granted exemption under sub-section (2) of section 143 of the Code from the provisions of Chapter IV shall—

(a) maintain such records and submit such returns and information to the Corporation as may be specified by the Central Government in the regulations;

(b) in the event of a change in legal status of the exempted establishment—by merger, demerger, acquisition, sale, amalgamation, or restructuring—the exemption shall stand cancelled, and a fresh application shall be required for exemption.

33. Terms and conditions for management of trust.-

(1) A Board of Trustees shall be constituted for managing the provident fund or pension fund, in accordance with the directions of the State Government or the Regional Provident Fund Commissioner.

(2) The Board shall comprise an equal number of representatives from employers and employees, as specified in the respective fund scheme.

(3) The employer shall be the Chairperson of the Board, and may exercise a casting vote in case of a tie. The Chairperson shall maintain arm's length principles in all proceedings.

(4) The Board shall meet at least once every three months and function per guidelines issued by the State Government or the Regional Provident Fund Commissioner.

(5) The procedure for election, tenure, disqualification, quorum, record maintenance, and other related matters shall be as specified in the relevant Provident Fund or Pension Scheme.

(6) In case of dispute or doubt—

(a) interpretation of any provision of this rule shall be referred to the State Government, whose interpretation shall be final;

(b) clarifications on any other matter relating to exemptions shall be referred to the Regional Provident Fund Commissioner or other authorized officer, whose clarification shall be binding.

34. Rule 34. Misuse of benefits under section 148 of the Code.-

In the event that any establishment or person is found to have misused any benefit under the Code or the rules, regulations, or schemes made thereunder, the State Government may, by notification, specify a period during which such establishment or person shall be ineligible to receive any further benefits

Dr. H. Lianzela
Secretary to the Government of Mizoram,
Labour, Employment, Skill Development &
Entrepreneurship Department

FORM I
(SEE RULE 5)
APPEAL TO EMPLOYEES' INSURANCE COURT

To,

The Authority,
(Appointed under the Code on Social Security, 2020)
……(Address)

Sir,

I……..…., the undersigned, employee
of…….…..…... (Name and full address of the establishment)

*Feel aggrieved by the order of ..... under sub section 7(a) of section 37 for the reasons attached hereto, prefer this second appeal under sub-section 7(b) of section 37 and request that the said ..... be ordered .....

A copy of the order of.....in this behalf is enclosed.

Signature or thumb impression
of the Aggrieved person

Date .....

Signature of an Attester in case the person
is not able to sign and affixes thumb impression.

FORM II
[SEE RULE 6 (2)]

In the Employees, Insurance Court at
…….....……
…….....
.....

Applicant
(add description and residence)
Against
…….……....……
...

Opposite Party (add description and residence) Other Particulars of Application specified in rule 6(2)
…….……....……
…….....
.....

Signature of Applicant

Date …….

(Verification by the applicant)

The statement of facts contained in this application is to the best of my knowledge and belief, true and correct.

Date ……..…

Signature

FORM III
[(SEE RULE 6(2)(IV)]
EMPLOYEE'S INSURANCE COURT AT .....
REGISTER OF PROCEEDINGS IN THE YEAR 20.....

Date of presentation of application	No. of proceedings	Name	Description	Place of residence	Particulars	Amount of value, if any	Place of residence	Particulars	Amount of value, if any	When the cause of action accured	Day of parties to appear	Applicant	Opposite party	Date	For whom		Order	Date of Decision of appeal, if any	Judgement in appeal	Date of application	Against whom	For what, and amount of money	Amount of cost	Date of order transferring to another civil court	Other remarks, if any
1	2	3	4	5	6	7	8	9	10	11	12	13	14	15	16	17	18	19	20	21	22	23	24	25	26

FORM IV
[SEE RULE 7 (2)]
NOMINATION

To

(Give here name or description of the establishment with full address)
(Name in full here)

I, Shri/Shrimati/Kumari.....whose particulars are given in the statement below, hereby nominate the person(s) mentioned below to receive the gratuity payable after my death as also the gratuity standing to my credit in the event of my death before that amount has become payable, or having become payable has not been paid and direct that the said amount of gratuity shall be paid in proportion indicated against the name(s) of the nominee(s).

1. I, hereby certify that the person (s) mentioned is a/are member (s) of my family within the meaning sub section (33) of section 2 of the code.
2. I hereby declare that I have no family within the meaning of sub-section (33) of Section 2 of the Code.
3. (a) My father/mother/parents is/are not dependent on me.
   (b) My husband's father/mother/parents is/are not dependent on my husband.

NOMINEE (S)

Name in full with full address of nominee	**Relationship with the employee**	**Age of Nominee**	**Proportion by which the gratuity will be shared**
1	2	3	4
1. 2. 3. 4.			

STATEMENT:

1. Name of the Employee in full.
2. Sex.
3. Religion.
4. Whether unmarried/married/widow/widower.
5. Department/branch/section where employed.
6. Post held with ticket no., or serial no., if any
7. Date of appointment
8. Permanent address

Place:
Date:

Signature/thumb-impression of the Employee.

DECLARATION BY WITNESS

Nomination signed/thumb impressed before me
Name in full and full address

Of Witness	Signature of witness
1.	1.
2.	2.

Certificate by the Employer
Certified that the particulars of the above nomination have been verified and recorded in the establishment.
Employer's reference no., if any

Signature of the employer/officer authorized
Designation

Date

Name and the address of the establishment or rubber stamp thereof.

Acknowledgment by the employee

Received the duplicate copy of nomination in form 'F' filed by me and duly certified by the employer.

Date

Signature of the Employee.

Note-Strikeout the words and paragraphs not applicable.

FORM V
[SEE RULE 7(2)(3)]
FRESH NOMINATION

To

(Give here name or description of the establishment with full address.)

I, Shri/Srimati ……. (name in full here) whose particulars are given in the statement below, have acquired a family within the meaning of sub-section (33) of section 2 of the code ……... with effect from the …… (date here) ……... in the matter indicated below and therefore nominate a fresh person(s) mentioned below to receive the gratuity payable after my death as also the gratuity standing to my credit in the event of my death before that amount has become payable or having become payable has not been paid, direct that the said amount of gratuity shall be paid in proportion indicated against the name(s) of the nominee(s).

1. I hereby certify the person(s) nominated is a/are member(s) of my family within the meaning of sub-section (33) of section 2 of the code.

1. (a) My father/mother/parents is/are not dependent on me.
   (b) My husband's father/mother/parents is/are not dependent on my husband.

2. I have excluded my husband from my family by a notice, dated the ……to the controlling authority in terms of the proviso to sub-section (33) of section 2 of the code.

NOMINEE(S)

Name in full with full address of nominee	**Relationship with the employee**	**Age of Nominee**	**Proportion by which the gratuity will be shared**
1	2	3	4

Manner of acquiring a 'family'
(Here give details as to how a family was acquired, i.e., whether by marriage or parents being rendered dependent or through other process like adoption.)

STATEMENT:

1. Name of the Employee in full.
2. Sex.
3. Religion.
4. Whether unmarried/married/widow/widower.
5. Department/branch/section where employed.
6. Post held with ticket no., or serial no., if any
7. Date of appointment
8. Permanent address

Place:
Date:

Signature/thumb-impression
of the Employee.

DECLARATION BY WITNESSES

Fresh nomination signed/thumb-impressed before me.
Name in full and full address of witness.

Signature of witnesses

1. **1.**

2. **2.**

CERTIFICATE BY THE EMPLOYER

Certified that the particulars of the above nomination have been verified and recorded in this establishment.

Employer's reference no., if any

Designation.
Name and address of the establishment
Or rubber stamp thereof.

Acknowledgment by the employee

Received the duplicate copy of the nomination in form's' filed by me on……., duly certified by the employer.

Date **signature of the employee**

Note-Strike out the words and paragraphs not applicable.

FORM VI
[SEE RULE 7 (2)(4)]
MODIFICATION OF NOMINATION

To

…….

[Give here name or description of the establishment with full address]

I, Shri/Shrimati/Kumari ……..…… [Name in full here] whose particulars are given in the statement below, hereby give notice that the nomination filed by me on …… [date] and recorded under your reference No. ……. dated ……... shall stand modified in the following manner. [Here give details of modifications intended]

STATEMENT

1. Name of employee in full.
2. Sex.
3. Religion.
4. Whether unmarried/married/widow/widower.
5. Department/Branch/Section where employed.
6. Post held with Ticket or Serial No. if any.
7. Date of appointment.
8. Address in full.

Place
Date

Signature/Thumb impression of the employer

DECLARATION BY WITNESSES

Modification of nomination signed/thumb impressed before me. Name in full and full address of witnesses.

Signature of witnesses
1.
2.

Place
Date

CERTIFICATE BY THE EMPLOYER

Certified that the above modification have been recorded. Employer's Reference No., if any.

Signature of the employer/ officer authorized
Designation

Name and address of the Establishment or rubber stamp thereof.

ACKNOWLEDGMENT BY THE EMPLOYEE

Received the duplicate copy of the notice for modification in Form 'H' filed by me on ……. duly certified by the employer.

Date **Signature of the employee**

FORM-VII
[SEE RULE 8(1) (i) (ii) (iii)]
APPLICATION FOR GRATUITY BY AN EMPLOYEE/NOMINEE/LEGAL HEIR
(Strike out the words not applicable)

To,

……
(Give here name or description of the establishment with full address)

Sir/Madam,

I, ……..…….... (name of employee/nominee/legal heir) /nominee of late ……..…….(Name of the employee)/ as a legal heir of late……..……. (Name of the employee), beg to apply for payment of gratuity to which I am entitled under sub-section (1) of section 53 of the Code on Social Security, 2020 on account of:

a) my superannuation/retirement/resignation after completion of not less than five years of continuous service/total disablement due to accident/total disablement due to disease / on termination of contract period under fixed term employment with effect from the ……... or;

b) death of the aforesaid employee while in service/superannuation on ……...…… after completion of……...…...years of service/total disablement of the aforesaid employee due to accident or disease while in service with effect from the …… or;

c) death of aforesaid employee of your establishment while in service/superannuation on …… (date) without making any nomination after completion of ……... years of service/total disablement of the aforesaid employee due to accident or disease while in service with effect from ……

Necessary particulars relating to my appointment are given in the statement below.

1. Name of employee in full, (if, the gratuity is claimed by an employee)
    a. Marital status of employee(unmarried/married/widow/widower)
    b. Address in full of employee, OR
2. Name of nominee/legal heir, (if the gratuity is claimed by nominee/legal heir)
    a. Name of Employee
    b. Marital status of nominee/legal heir(unmarried/married/widow/widower)
    c. Relationship of nominee/legal heir with the employee
    d. Address in full of nominee/legal heir
    e. Date of death and proof of death of the employee
    f. Reference No. of recorded nomination if available
3. Department/Branch/Section where last employed
4. Post held by employee.
5. Date of appointment.
6. Date and cause of termination of service
7. Date of Death

8. Total period of service of the employee
9. Total wages last drawn by the employee.
10. Total gratuity payable to the employee/ share of gratuity claimed by a nominee/legal heir.
11. Payment may please be made by crossed bank cheque/credit in my bank account no…...

Yours Faithfully,
Signature/Thumb-impression
of the applicant employee/nominee/legal heir.

Place/Date

FORM-VIII
[(SEE RULE 8(2)]
NOTICE FOR PAYMENT/REJECTING CLAIM OF GRATUITY
(Strike out the words not applicable)

To

,……
(Name and address of the applicant employee/nominee legal heir)

You are hereby informed that

(a) *as required under clause (b) sub-rule (2) of rule 8 of the Code on Social Security Rules, 2021, that your claim for payments of gratuity as indicated on your application in Form-VII under the said rules is not admissible for the reasons stated below:
Reasons (Here specify the reasons); or

(b) *as required under clause (a) sub-rule (2) of rule 8 of the Code on Social Security Rules, 2021 that a sum of Rs. ……... (Rupees……) is payable to you as gratuity/as your share of gratuity in terms of nomination made by .....…….on……and……recorded in this …… as a legal heir of……..an employee of this establishment.

2. *Please call at ……..... on…….....…….....… (Here specify place) ……...(date) at……. (time) for collecting your payment of gratuity crossed cheque.

3. Amount payable shall be sent to you through demand draft or shall be credited in your bank account as desired by you.

4. Brief statement of calculation
   (a) Date of appointment.
   (b) Date of termination/superannuation/resignation/ disablement/death.
   (c) Total period of service of the employee concerned: .....years……...months.
   (d) Wages last drawn:
   (e) Proportion of the admissible gratuity payable in terms of nomination/as a legal heir:
   (f) Amount payable:

Place:
Date:

Signature of the Employer/
authorised officer.

Name or description of establishment or rubber stamp thereof.

Copy to: The Competent Authority in case of denial of gratuity.

FORM-IX
[(SEE RULE 8(4)]
APPLICATION FOR DIRECTION
BEFORE THE COMPETENT AUTHORITY FOR CHAPTER V UNDER THE CODE ON SOCIAL SECURITY, 2020

Application No. ..... Date.....

BETWEEN

(Name in full of the applicant with full address)

AND

(Name in full of the employer concerned with full address)

The applicant is an employee of the above-mentioned employer/a nominee of late…… an employee of the above-mentioned employer/a legal heir of late…… and employee of the above-mentioned employer and is entitled to payment of gratuity under section 53 of the Code on Social Security, 2020 on account of his own/aforesaid employee's superannuation on…… (date)/his own retirement/aforesaid employees' resignation n……..(date) completion of……years of continuous service/his own/aforesaid employees' total disablement with effect from …….(date) due to accident/disease death of an aforesaid employee on…….

2. The applicant submitted an application under rule 8(1) of the Code on Social Security (Mizoram) Rules, 2021 on the ……. But the above-mentioned employer refused to entertain it/ issued a notice dated the …… under clause ……of sub-rule of rule …….....……. offering an amount of gratuity which is less than my due/issued a notice dated ……... the under clause……. of sub-rule……of rule……. rejecting my eligibility to payment of gratuity. The duplicate copy of the said notice is enclosed.
3. The applicant submits that there is a dispute on the matter (specify the dispute).
4. The applicant furnishes the necessary particulars in the annexure hereto and prays that the Competent Authority may be pleased to determine the amount of gratuity payable to the petitioner and direct the above-mentioned employer to pay the same to the petitioner.
5. The applicant declares that the particulars furnished in the annexure hereto are true and correct to the best of his knowledge and belief.

Date:

Signature/Thumb impression of the applicant.

ANNEXURE

1. Name in full of the applicant with full address.
2. Basis of a claim (Death/Superannuation/Retirement/Resignation/Disablement of Employee/ Completion of contract period under Fixed Term Employment).

3. Name and address in full of the employee.
4. Marital status of the employee (unmarried/married/widow/widower).
5. Name and address in full of the employer.
6. Department/Branch/Section where the employee was last employed (if known).
7. Post held by the employee with Ticket or Sl. No., if any (if known).
8. Date of appointment of the employee (if known).
9. Date and cause of termination of service of the employee (Superannuation/ retirement/ resignation/disablement/death /Completion of contract period under Fixed Term Employment).
10. Total period of service by the employee
11. Wages last drawn by the employee
12. If the employee is dead, date and cause thereof
13. Evidence/witness in support of death of the employee
14. If a nominee, No. and date of recording of nomination with the employer
15. Evidence/witness in support of being a legal heir if a legal heir
16. Total gratuity payable to the employee (if known)
17. Percentage of gratuity payable to the applicant as nominee/legal heir
18. Amount of gratuity claimed by the applicant

Place:
Date:

Signature/Thumb-impression of the applicant

FORM – X
[(SEE RULE 8 (5), (8)]
NOTICE FOR APPEARANCE BEFORE THE COMPETENT AUTHORITY/SUMMON
(Strike out the words not applicable)

To,

(Name and address of the employer/applicant)

Whereas Shri/Smt ……...an employee under you/a nominee(s)/legal heir(s) of Shri/Smt…….an employee under the above-mentioned employer, has/have filed an application under sub-rule ..... of rule ..... of the Code on Social Security (Mizoram) Rules, 2021 alleging that..... (A copy of the said application is enclosed, if, summon is issued then copy of application is not required) Now, therefore, you are hereby called upon/summoned to appear before the Competent Authority at ……...(place) either personally or through a person duly authorized in this behalf for the purpose of answering all material questions relating to the application on the …... day of ……20…... at …….'O' clock in the forenoon/afternoon in support of/to answer the allegation; and as the day fixed for your appearance is appointed for final disposal of the application, you must be prepared to produce on that day all the witnesses upon whose evidence, and the documents upon which you intend to rely in support of your allegation/defence.

Take notice that in default of your appearance on the day before-mentioned, the application will be dismissed/heard and determined in your absence.

Whereas your attendance is required to give evidence/you are required to produce the documents mentioned in this list below, on behalf of ……. in the case arising out of the claim for gratuity by……. Form……. and referred to this Authority by an application under section 56 of the Code on Social Security, 2020, you are hereby summoned to appear personally before this Authority on the ……. day of ……...20……... at …… 'O'clock in the forenoon/afternoon and to bring with you for to send to this Authority) the said documents Whereas your attendance is required to give evidence/you are required to produce the documents mentioned in this list below, on behalf of ……... in the case arising out of the claim for gratuity by……. Form……... and referred to this Authority by an application under section 56 of the Code on Social Security, 2020, you are hereby summoned to appear personally before this Authority on the ……. day of ……...20……. at …… 'O'clock in the forenoon/afternoon and to bring with you for to send to this Authority) the said documents.

List of documents
1.
2.
3.
Given under my hand and seal, this……...day…… 20….

Competent Authority
under the Code on Social Security Code, 2020

Note:

1. Strike out the words and paragraphs not applicable.
2. The portion not applicable to be deleted.
3. The summons shall be issued in duplicate. The duplicate is to be signed and returned by the persons served before the date fixed.
4. In case the summons is issued only for producing a document and not to given evidence it will be sufficient compliance to the summons if the documents are caused to be produced before the competent authority on the day and hour fixed for the purpose.

FORM – XI
[(See Rule 8(11) and (12)]
Notice for Payment of Gratuity as Determined by Competent/Appellate Authority
(Strike out the words not applicable)

To,
(Name and address of employer)

1. Whereas Shri/Smt …… of an employee …… (address) under you/ a nominee(s)/legal heir(s) of late ……an employee under you, filed an application under section 56 of the Code on Social Security, 2020, before me; or

Whereas a notice was given to you on ……. requiring you to make payment of Rs……to Shri/Smt ……as gratuity under the Code on Social Security, 2020.

2. And whereas the application was heard in your presence on……...and after the hearing has come to the finding that the said Shri/Smt ……is entitled to a payment of Rs…… as gratuity under the Code on Social Security, 2020; or

Whereas you/the applicant went in appeal before the appellate authority, who has decided that an amount of Rs……. is due to be paid to Shri/Smt as gratuity due and the amount as interest due under The Code on Social Security, 2021.

Now, therefore, I hereby direct you to pay the said sum of Rs. ……to Shri/Smt ……. within thirty days of the receipt of this notice with an intimation thereof to me.

Given under my hand and seal, this …….day of…….20……...

Competent Authority
under the Code on Social Security Code, 2020

Copy to:
1. The Applicant- He is advised to contact the employer for collecting payment.
2. The Appellate Authority if applicable.

Note. --- (Strike out paragraphs if not applicable).

FORM – XII
[(SEE RULE 8(13)]
APPLICATION FOR RECOVERY OF GRATUITY

Before the Competent Authority for Chapter V under the Social Security Code, 2020
Application No.... Date.....

BETWEEN

(Name in full of the applicant with full address)

AND

(Name in full of the employer/Trust/Insurer concerned with full address)

1. The applicant is an employee of the above-mentioned employer/a nominee of late…… an employee of the above-mentioned employer/a legal heir of late ……an employee of the above-mentioned employer, and you were pleased to direct the said employer in your notice dated the ……..of Code on Social Security (Mizoram) Rules, 2021 for payment of a sum of Rs……. as gratuity payable under the Code on Social Security, 2021.

2. The applicant submits that the said employer failed to pay the said amount of gratuity to me as directed by you although I approached him for payment.

3. The applicant, therefore, prays that a certificate may be issued under section 129 of the Code for recovery of the said sum of Rs. …… due to me as gratuity in terms of your direction.

Signature/Thumb-impression of applicant.

Place:
Date:

Note. — Strike out the words not applicable.

FORM-XIII
[See Rule-9 (3)]

Application for Registration of an Establishment under sub-section (3) of Section 57.

A. Establishment Details.

1. Retrieve details of Establishment through LIN/Registration Number:
2. Name of Establishment:
3. Location and Address of the Establishment:
4. Other details of Establishment:
   a. Total Number of employees engaged directly in the establishment:
   b. Total Number of the contract employees engaged:
   c. Total Number of Inter-State Migrant workers employed:
5. Ownership Type/Sector:
6. Activity as per National Industrial Classification (NIC):
7. Details of Selected NIC Code:
8. Identification of the establishment e-sign/ digital sign of employer/ representative:

B. Details of Employer: -

1. Name & Address of Employer / Occupier / Owner/Agent/ Chief Executive
2. Designation:
3. Father's/ Husband's Name of the Employer:
4. Email Address, Telephone & Mobile No:

C. Manager/ Agent Details

1. Full name & Address of Manager/ Agent or person responsible for supervision and control of the Establishment;
2. Address of Manager/ Agent:
3. Email Address, Telephone & Mobile No:

D. Details of Approved Gratuity Fund/Insurance obtained for liability of payment towards the Gratuity;

E. Others Details: -

Signature/ E-sign/digital sign of employer

Dated:
Place:

FORM – XIV
[SEE RULE 11(1)(a)]
COMPLAINT TO THE INSPECTOR-CUM-FACILITATOR

To,

The Inspector-cum-Facilitator
(Under The Code on Social Security, 2020)

Sir,

I……..… (Name of the woman) employed in……..…..… (name and full address of the establishment) or I……....., (name), a person nominated under section 62 by or a legal representative of….....… (Name of the woman) employed in……..…. (Name and full address of the establishment) having fulfilled the conditions laid down in the Code on Social Security, 2020 and the Rules thereunder, am entitled to Rs…….....being maternity benefit and/ or Rs….....being the medical bonus and/ or Rs…..…….. being wages for leave due under section 65 but the same has been improperly withheld by the employer/discharged or dismissed during or on account of her absence from work in accordance with the provisions of this Chapter VI of Code on Social Security, 2020.

You are therefore requested, to direct the employer to pay the amount to me/ to set aside the discharge or dismissal done by the employer.

Signature or thumb impression of the Woman/ nominee/ legal representative

Date……

Signature of an Attester in case the woman/ nominee/ legal representative is unable to sign and affixes thumb impression.
Full address of the women/nominee/legal representative.

FORM-XV
APPEAL
[SEE RULE 11 (2) (b)]

To,

The Authority,
(Appointed under the Code on Social Security, 2020)
…… (Address)

Sir,

I……, the undersigned, woman employee of…… (name and full address of the establishment)

*Feel aggrieved by the order of Inspector-cum-Facilitator under subsection (2) of section 72 for the reasons attached hereto, prefer this appeal under sub-section (2) of section68 and request that the said employer be ordered to pay the above-mentioned amount to me. A copy of the order of Inspector-cum-Facilitator cum Facilitator in this behalf is enclosed;

or

*Shri….....…,Inspector-cum-Facilitator, having directed under subsection (2) of section 72 to pay the maternity benefit or other amount being….....……(Nature of amount) to which….....…… (Name of the woman) is said to been titled/to set aside my discharge or dismissal during or on account of absence from work in accordance with the provisions of this Chapter V of the Code on Social Security, 2020(Strikeout unnecessary portion).

I prefer this appeal under sub-section (3) of section 72. In view of the facts mentioned in the memorandum attached hereto and other documents filed herewith, it is submitted that the woman is not entitled to the maternity benefit or the said amount and hence the order of the Inspector-cum-Facilitator in the copy of which is enclosed, maybe set aside.

**Strike out unnecessary portions.*

Signature or thumb impression of the Women /Aggrieved person

Date……

Signature of an Attester in case the woman is not able to sign and affixes thumb impression. Full address of the nominee/legal representative

FORM XVI
(NOTICE BOOK OF THE ACCIDENTS)
(SEE RULE 14)

Name of the Establishment…….....…

Nature of Business …….....……

Date of opening…….....….....…

Registration no (if any)-…….....

Name of the employer/occupier…….....….

Date of Accident	Short detail of accident	Name of the injured person	Whether accident result in death	Whether accident result in total disablement	Whether accident result in partial disablement	Whether accident result in Temporary disablement	Amount of Compensation paid to mployee or his dependent	Amount of Compensation deposited to Competent Authority	Date of payment or deposit of Compensation
1	2	3	4	5	6	7	8	9	10

FORM XVII
(SEE RULE 16)
STATEMENT OF FATAL ACCIDENTS

To,

Competent Authority,
.....

Sir,

1. I have the honour to submit the following statement of an accident which occurred in (date), at (here enter details of premises) and which resulted in the death of the employee/employees of whom particulars are given in the statement annexed.

2. The circumstances relating to the death of the employee/employees were as under: -
   (a) Time of the accident.
   (b) Place where the accident occurred.
   (c) Manner in which deceased was/were employed at the time.
   (d) Cause of the accident.
   (e) Any other relevant particulars.

3. I am responsible for the payment of compensation.

4. Details of employee …….
   a. Name of the employee …….
   b. Age of the employee …….
   c. Wages of the employee ……
   d.

5. The establishment is not responsible for payment of compensation due to reasons mentioned below.....

(Signature and designation
of person making the statement)

FORM XVIII
(SEE RULE 17)
MEMORANDUM OF AGREEMENT

It is hereby submitted that on the ..... day of ..... 20..... personal injury was caused to ..... residing at by accident arising out of and in the course of his employment in ..... The said injury has resulted in permanent disablement to the said workman of the following nature, namely: -

The said employee's monthly wages are estimated at Rs. ..... The employee is over the age of 15 years / will reach the age of 15 years on.....

The said employee has, prior to the date of the agreement, received the following payments, namely: --

Rs. ..... on ..... Rs. ..... on .....
Rs. ..... on ..... Rs. ..... on .....
Rs. ..... on ..... Rs ..... on .....

It is further submitted that the employer of the said employee has agreed to pay, and the said employee has agreed to accept, the sum of Rs. ..... in full settlement of all and every claim under the Code on Social Security, 2020 in receipt of the disablement stated above and all disablement now manifest. It is therefore requested that this memorandum be duly recorded.

Dated .....20.....

Signature of employer Witness
Witness

Signature or employee

Note- Application to register an agreement can be presented under the signature of one party: provided that the other party has agreed to the terms. But both signatures should be appended, whenever possible.

Receipt (to be filled in when the money has actually been paid)
In accordance with the above agreement, I have this day received the sum of Rs.....

Dated .....20.....

Employee

The money has been paid and this receipt signed in my presence.

Witness

Note- This form may be varied to suit special cases, e.g., injury by occupational disease, agreement when employee is under legal disability, etc.

FORM XVIII-A
(SEE RULE 17)
MEMORANDUM OF AGREEMENT

It is hereby submitted that on the ..... day of ..... 20 ..... personal injury was caused to ..... residing at ..... by accident arising out of said in the course of employment in .... The said injury has resulted in temporary disablement to the said employee, who is at present in receipt of wages amounting to Rs…… per month/no wages.

The said employee's monthly wages prior to the accident are estimated at Rs. ..... The employee is subject to a legal disability by reason of.

It is further submitted that the employer of the employee has agreed to pay and on behalf of the said employee has agreed to accept half-monthly payments at the rate of Rs. ..... for the period of the said temporary disablement. This agreement is subject to the condition that the amount of the half-monthly payments may be varied in accordance with provisions of the said Act on account of an alteration in the earnings of the said employee during disablement. It is further stipulated that all rights of commutation under Section 7 of the said Act are unaffected by this agreement it is, therefore, requested that this memorandum be duly recorded.

Dated ..... 20.....

Signature of employer

Witness

Signature of employee
Witness

Note- An application to register an agreement can be presented under the signature of one party: provided that the other party has agreed to the terms. But both signatures should be appended, whenever possible.

Receipt (to be filled in when the money has actually been paid). In accordance with the above agreement, I have this day received the sum of Rs.....

Employee
Dated .....20…..

The money has been paid and this receipt signed in my presence.
Note- This form may be varied to suit special cases, e.g., injury by occupational disease, etc.

FORM XVIII-B
(SEE RULE 17)
MEMORANDUM OF AGREEMENT

It is hereby submitted that on the ..... day of ..... 20..... personal injury was caused to ..... residing at by accident arising out of and in the course of his employment in ..... The said injury has resulted in death to the said workman.

The said employee's monthly wages are estimated at Rs. ..... The employee is over the age of 15 years / will reach the age of 15 years on .....

The said employee has, prior to the date of the agreement, received the following payments, namely: --
Rs. ..... on ..... Rs. ..... on .....
Rs..... on ..... Rs. ..... on .....
Rs. .....on ..... Rs ..... on .....

It is further submitted that the employer of the said employee has agreed to pay, and dependent (s) of the said employee has agreed to accept, the sum of Rs. ..... in full settlement of all and every claim under the Code on Social Security, 2020 in receipt of death stated above. It is, therefore, requested that this memorandum be duly recorded.

Dated .....20.....

Signature of employer

Witness

Witness

Signature or dependant(s)

Note- Application to register an agreement can be presented under the signature of one party: provided that the other party has agreed to the terms. But both signatures should be appended, whenever possible.

Receipt (to be filled in when the money has actually been paid)
In accordance with the above agreement, I have this day received the sum of
Rs.....
Dated .....20.... .

Dependant(s)

The money has been paid and this receipt signed in my presence.

Witness

FORM XIX
[(SEE RULE 17(2)]

Whereas an agreement to pay compensation is said to have been reached between ..... and ..... and whereas has/have applied for registration of the agreement under section 89 of the Code of Social Security, 2020 notice is hereby given that said agreement will be taken into consideration on ..... 20 ..... and that any objections to the registration of the said agreement should be made on that date. In the absence of valid objections, it is my intention to proceed to the registration of the agreement.

Dated .....20 .....

Competent Authority

FORM XX
{SEE RULE 17(5)}
REGISTER OF AGREEMENT FOR YEAR 20.....

S.no	Date of Agreement	Date of Registration	Employer	Employee	Initial of Competent Authority	Reference to orders rectifying the register

FORM – XXI
[(See Rule 27(1)(a)]
REGISTER OF WOMEN EMPLOYEES

Name of Establishment

1. Serial Number.
2. Name of woman and her father's (or, if married, husband's) name.
3. Date of appointment.
4. Nature of work.
5. Dates with month and year in which she is employed, laid off and not employed.

Month	No. of days employed	No. of days laid off	No. of days not employed	Remark
a	b	C	D	e

6. Date on which the woman gives notice under section 62.
7. Date of discharge/dismissal, if any.
8. Date of production of proof of pregnancy under section 62.
9. Date of birth of the child.
10. Date of production of proof of delivery/miscarriage/Medical Termination of pregnancy/ tubectomy operation/death/adoption of the child.
11. Date of production of proof of illness referred to in section 65.
12. Date with the amount of maternity benefit paid in advance of expected delivery.
13. Date with the amount of subsequent payment of maternity benefit.
14. Date with the amount of bonus, if paid, under section 64.
15. Date with the amount of wages paid on account of leave under sections 65(1) & 65(3).
16. Date with the amount of wages paid on account of leave under section 65(2) and period of leave granted.
17. Name of the person nominated by the woman under section 62.
18. If the woman dies, the date of her death, the name of the person to whom maternity benefits and/or other amount was paid, the amount thereof, and the date of payment.
19. If the woman dies and the child survives, the name of the person to whom the amount of maternity benefit was paid on behalf of the child and the period for which it was paid.
20. Signature of the employer of the establishment authenticating the entries in the register of women employees.
21. Remarks column for the use of the Inspector-cum-Facilitator.

FORM XXII
[(SEE RULE 27(3)(a)]
UNIFIED ANNUAL RETURN

A. General Part:

(a) Name of the establishment…….....
Address of the establishment: …….
House No./Flat No. Town…….
District…….State…… Pin code ….....

(b) Name of the employer .....
Address of the employer:
House No./Flat No. ……. Street No./Plot No. …….....
Town……. District…….State…….pin code……..
E-mail ID……Telephone Number…….Mobile number.....

(c) Name of the manager or person responsible for supervision and control of establishment……
Address: House No./Flat No……. Street No./Plot No…….....
Town……. District……. State……. Pin code…....
E-mail ID……Telephone Number…….Mobile number….....

B. Employer's Registration/Licence number under the Codes mentioned in column (2)of the table below:

S. No. Name Registration If yes (Registration No.)

S.no	Name	Registration		If Yes, (Registration No.)
1	2	3		4
01	The code on Occupational Safety Health and Working			
02	The Code on Social Security 2020			
03	Any other Law for the Time being			

C. Details of Employer, Contractor, and Contract Labour

01	Name of the employer in the case of a contractor's establishment.	
02	Date of commencement of the establishment.	
03	Number of Contractors engaged in the establishment during the year.	
04	Total Number of days during the year on which Contract Labour was employed	
05	Total number of man-days worked by Contract Labour during the year.	
06	Name of the Manager or Agent (in case of mines).	
07	Address/House No./Flat No. Street/Plot No. Town District State Pin Code E-mail ID Tel Number Mobile Number	

D. Working Hours and Weekly rest day:

01	Number of days worked during the year	
02	Number if mandays worked during the year	
03	Daily hours of work	
04	Weekly day of rest	

E. Maximum number of persons employed in any days during the year:

Sl. no.	Males	Females	Adolescents (between the age of 14 – 18 years)	Children (below 14 years of age)	Total

F. Wage rates (Category Wise)

Category	Rate of Wages	No. of workers							
		Regular				Contract			
		Male	Female	Children	Adolescent	Male	Female	Children	Adolescent
Highly									
Skilled									
Skilled									
Semiskilled									
Unskilled									

G. (a) Details of Payment:

Gross wage paid		Deduction			Net wages paid	
In Cash	In kind	Fines	Deduction for damage or loss	Others	In Cash	In kind

(b) Number of workers who were granted leave with wages during the year:

Sl.no.	During the year	Number of workers	Granted leave with wages

H. Details of various welfare amenities provided under the statutory schemes:

Sl.no	Nature of various welfare amenities provided	Statutory (specify the statute)

I. Maternity Benefit under the Code on Social Security, 2020:

(a) Details of the establishment, medical and Para-Medical staff:

01	Date of opening of the establishment	
02	Date of closing, if close	
03	Name of Medical Officer	
03 (i)	Qualification of Medical Officer	
03 (ii)	Is Medical Officer at (the mines or circus)?	
03 (iii)	Is a part time, how often does he/she pay visit to establishment	
03 (iv)	Is there any Hospital?	
03 (v)	If so, how many beds are provided?	
03 (vi)	Is there a lady Doctor?	
03 (vii)	If so, what is her qualification?	
03 (viii)	Is there a qualified mid-wife?	
03 (ix)	Has any creche been provided?	

(b) Leave Granted under the Code of Social Security, 2020

01	Total number of female employees in the establishment	
02	Total number days of leave granted	
03	Number of employees granted maternity leave/benefited by ESI	

DECLARATION

It is to certify that the above information is true and correct and also, I certify that I have complied with the all provisions of Labour Laws applicable to my establishment.

Signature

Place:
Date:

FORM-XXIII
[See rule 28 (1)]

Notice to the employer for an offence committed under the provisions of the Code for the first time for compounding of offences under sub-section (1) of section 138

Notice No……
Date:

On the basis of records and documents produced before me, the undersigned has reasons to believe that you, being the employer of the establishment…….. (Registration No…….), have committed an offence for the violation of provision of the Code or the Schemes or the Rules or the Regulations framed thereunder as per the details given below:-

PART – I

1.	Name of the person:	
2.	Name and Address of the establishment:	
3.	Registration No. of the establishment:	
4.	Particulars of the offence:	
5.	Provisions of the Code/Scheme/Rules/Regulations under which the offence is committed:	
6.	Compounding amount required to be paid towards composition of the offence:	
7.	Name and details of account for depositing the amount specified in serial no. 6:	

PART – II

In view of the above, you have an option to pay the entire amount mentioned in serial no. 6 in Part-I within fifteen days from the date of issue of this notice and return the application duly filled in Part – III of this notice.

In case the said amount is not paid within the specified time, necessary action for filing of prosecution shall be initiated without giving any further opportunity in this regard.

(Signature)
(Name and designation of Officer)

Date:
Place:

To:
……..(Employer/Establishment)
……(Name and registration number)
…….(Address)

PART – III
[See rule 28 (2)]

Application under sub-section (4) of section 138 for compounding of offence

Ref: Notice No……..
Date:

The undersigned has deposited the entire amount as specified in serial 6 of Part-I and the details of payment are given below with a request to compound the offences mentioned in Part-I.

8. Details of the compounding amount deposited (Copy of electronically generated receipt to be attached):

9. Details of the prosecution, if filed for the violation of above-mentioned offences may be given:

10. Whether the offence is first offence or the applicant had committed any other offence prior to this offence, if committed, then, full details of the offence:

11. Any other information which the applicant desires to provide:

Signature of the applicant
(Name and Designation)

Date:
Place:

To:
……..(Compounding Officer)
……(Name of the Office)
…….(Address)

PART – IV
[See rule 28 (3)]

Composition Certificate

Ref: **Notice** **No……..**
Date:

This is to certify that the offence under sub-section ….. of section 133 in respect of which Notice No. Dated: _____ was issued to Sh……. (Applicant), the employer of ……. (name and registration number of establishment) has been compounded on account of remission of full amount of Rs …….. (Rupees _____) towards the composition of offences to the satisfaction of the said notice.

(Signature)
Name and Designation of the Officer

Date:
Place:

To:
……..(Employer/Establishment)
……(Name and registration number)
…….(Address)

FORM-XXIV
[SEE RULE 29(3)(B)]
FORM FOR REPORTING VACANCIES TO CAREER CENTERS
(Separate forms to be used for each type of posts)

<table>
<tr><td>1</td><td>Particulars of the employer:
Name:
Address with pin code:
Telephone No.:
Mobile No.:
Email Address:
Name & Type of Establishment
(Central Government, State Government, PSU, Autonomous, Private, etc.)
Registration No of establishment under Code: Economic activity details:</td><td colspan="2"></td></tr>
<tr><td>2</td><td>Particulars of the indenting Officer:
Name: Designation:
Telephone No.:
Mobile No.:
Email address:</td><td colspan="2"></td></tr>
<tr><td rowspan="6">3</td><td>Particulars of vacancy (ies):
(a) Designation/nomenclature of the vacancy (ies) to be filled
(b) Description of duties of the post (job role/functional role)</td><td colspan="2"></td></tr>
<tr><td>(c) Qualifications/Skills required (educational, technical, experience)</td><td>Essential</td><td>Desirable/ Preferable</td></tr>
<tr><td>(i) Educational Qualifications
(ii) Technical Qualifications
(iii) Skills
(iv) Experience</td><td></td><td></td></tr>
<tr><td>(d) Age Limits, if any
(Age as on last date of application)</td><td colspan="2"></td></tr>
<tr><td>(e) Preferences (such as Ex-servicemen, persons with disabilities, women, etc.) if any</td><td colspan="2"></td></tr>
<tr><td>(f) duration of employment
(i) 3-6 months</td><td colspan="2">Number of Post</td></tr>
<tr><td></td><td>(ii) 6-12 months
(iii) 12 months and more</td><td colspan="2"></td></tr>
<tr><td>4</td><td>Whether there is any obligation for the arrangement for giving reservation/ preference to any category of persons such as Scheduled Caste(SC), Scheduled Tribe(ST), Economically Weaker Sections(EWS), Other Backward Classes(OBC), Ex-serviceman and persons with disabilities (PwD), etc, in filling up the vacancies: Yes/No
(if yes, give the number of vacancies to be filled by such categories of persons as detailed below)</td><td colspan="2"></td></tr>
</table>

5	**Category**	Number of vacancies to be filled	
	(a) Scheduled Caste (b) Scheduled Tribe (c) OBC (d) EWS (e) Ex-Serviceman (f) Persons with disabilities (PWD) (g) women (h) Others(specify)	Total	*By Priority candidates *(Applicable for Central Government vacancies)
6	**Pay and Allowances:** For Government vacancies: Mention pay level/pay scale of the post with basic pay/pay per month with other details if any. For others: Mention minimum total emoluments per month with other details, if any.		
7	Place of work (Name of the town/village)		
8	Mode of Application (email, online, in writing, etc.,) and Last date for receipt of applications.		
9	Particulars of officers to whom the applications be sent/candidates should approach (Mention Name, designation, email id, address, telephone No., the website address in case of online)		
10	**Mode of Recruitment** {Through Career Centre, Placement Agency, self-management, any other mode(specify)}		
11	Would like to prefer submission of list of eligible candidates registered with Career Centre	Yes / No	
12	Any other relevant information		
13	Name, address, email id of the Career Centre		
14	Date of receipt of Vacancies		
15	NIC Code of the establishment/		
16	NCO Code of the post		
17	Unique Vacancy ID(number)		

Signature, Name & Designation of Authorized Signatory of Career Centre with seal & date

NOTE:

1. Career Centre to which the vacancies are reported, would provide a unique vacancy reporting number for the vacancy reported and convey it to the employer in writing, through email or digitally or through any other such media immediately but in any case, not later than 3 working days from the date of receipt of reporting of vacancies.

2. An employer, if advertises that vacancy in any media or makes recruitment through any agency or any other mode, may invariably quote that unique vacancy reporting number in that advertisement or recruitment process.
3. Any change in the particulars already furnished to the Career Centre, shall be reported in writing or through valid official email or digitally (including through a portal) as the case may be, to the appropriate Career Centre.

FORM-XXV
[See Rule 29(6)]
Form EIR (Employment Information Return)

Yearly Return to be submitted to the Centre (Regional) for the Year ended ……..…..

The following information is required to be submitted under the Code on Social Security (Chapter XIII- Employment Information and Monitoring) 2020.

Name and Address of the employer	
Whether – Head Office	
Branch Office Type of Establishment (Public / Private Sector)	
Nature of business/ Principal activity	
Establishment Registration No. under the Code	

1. (a) EMPLOYMENT

Total number of *manpower of establishment* including working *proprietors/partners/contingent* paid and contractual workers, out-sourced workers excluding part-time workers and apprentices. (The figures should include every person whose wage or salary is paid).

Category	On the last working day of the previous Year	On the last working day of the Year under report
MEN WOMEN OTHER (Transgender) TOTAL PWD (persons with disabilities) out of above total		

2. Number of vacancies* occurred and reported to Career Centre during the year and the number of vacancies filled during the year.

Occurred	Reported		Filled	Source (Career Centre/. NCS Portal/Govt. Recruiting Agencies/Private Placement Organisations/Other
	Career Centre (Regional)	Career Centre (Central)		
1	2	3	4	5

- As per provisions of Code on Social Security, 2020 (Chapter XIII) and rules made there under.

1. MANPOWER SHORTAGES:

Vacancies/posts remained unfilled because of shortage of suitable applicants.

Name of the occupation or designation of the post	Number of unfilled vacancies/posts		
	Skill/Qualifications (educational / Technical/Experience) prescribed	Essential	Desirable
1	2	3	4

(Please list any other occupations also for which this establishment had any difficulty in obtaining suitable applicants recently.)

2. Estimated Manpower Requirement by Occupational Classification during the next calendar year (Please give below the number of employees in each occupation separately).

Occupation	**Number of employees**
	Please give as far as possible approximate number of vacancies in each occupation you are likely to fill during the next financial year due to retirement/expansion or re-organisation.

Description	Men	Women	Others (transgender)	Total	PWD (persons with disabilities) out of total
1	2	3	4	5	6
*					
Total:					

- In the column (description)- use exact terms such as Engineer (Mechanical), Assistant Director (Metallurgist); Research Officer (Economist); Supervisor (Tailoring), Inspector (Sanitary), Superintendent (Office) , Manager (Sales), Manager (Accounts), Executive (Marketing), Data Entry Operator …….. so on.

Signature, Name & Designation of Authorised Signatory
of establishment/employer with seal & date

To

The Career Centre,
……..

Note:-

1. This return is to be rendered to the Career Centre(Regional) with 30 days after the end of the financial year concerned by establishments/employers vide their obligation under the Code on Social Security, 2020 (Chapter – XIII-Employment Information and Monitoring).

2. The main purpose in obtaining the information from employers is to know-

(i) the vacancies/employment opportunities available;

(ii) type of personnel who are in short supply ; and

(iii) future job opportunities for providing vocational guidance to the jobseekers and connecting them with the employers. This is helpful in ascertaining the skill deeds also. Employees too will be able to call on the Career Centres for getting suitable candidates as per their requirement.

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